57 A.L.R.4th 1049 (Originally published in 1987)

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ALR4th
Edward L. Raymond, Jr., J.D.

Court reporter's death or disability prior to transcribing notes as grounds for reversal or new trial

TABLE OF CONTENTS

Article Outline
Index
Table of Cases, Laws, and Rules
Research References

ARTICLE OUTLINE

I Preliminary Matters
§ 1[a] Introduction—Scope
§ 1[b] Introduction—Related matters
§ 2[a] Summary and comment—Generally
§ 2[b] Summary and comment—Practice pointers
II Criminal Cases
A Transcript of Trial
1 Preparation by Another Reporter
§ 3 Slight or insignificant omissions, generally
§ 4 Adequate to ascertain trial improprieties
§ 5 Failure to object to omissions
§ 6 Failure to demonstrate prejudice
§ 7 Certification
2 Failure or Inability to Transcribe Notes
§ 8 Impossibility of obtaining transcript; generally
§ 9 Constitutional right to new trial
§ 10 Failure to make timely request for transcript
§ 11 Indirect appeals by indigent defendants
§ 12 Time and expense prohibitive
§ 13 Failure to request case made
§ 14 Diligent effort not made to decipher notes
§ 15 Record of other proceeding available
§ 16 Failure to preserve evidence
§ 17 Lack of authority to order new trial
§ 18 Failure of state to provide "equivalent picture" of proceedings below
3 Failure or Inability to Complete Partially Transcribed Notes
§ 19 Impossibility of reconstructing record, generally
§ 20 Failure to request complete transcript

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§ 21 Inability to reconstruct jury instructions
B Attempt to Settle Record or Agree to Facts
§ 22 Inability to agree to facts, generally
§ 23 Prepared by substitute reporter
§ 24 Prepared and certified by judge
§ 25 Inability to remember facts
§ 26 Different counsel
§ 27 Counsel able to prepare stipulated record
§ 28 Statement refused by court
III Civil Cases
A Transcript of Trial
1 Preparation by Another Reporter
§ 29 Adequate to obtain review
§ 30 Failure to show inaccuracies
§ 31 Certification
32 Failure or Inability to Transcribe Notes
§ 32 Constitutional right
§ 33 Failure to show notes cannot be transcribed
§ 34 Diligent effort made to obtain transcript
§ 35[a] Delay or laches—Requesting transcript
§ 35[b] Delay or laches—Failure to compel transcription
§ 35[c] Delay or laches—Attempting to have notes transcribed
§ 35[d] Delay or laches—Notice to court of need for transcript
§ 35[e] Delay or laches—Requesting relief
§ 36 Reliance on court reporter for transcript
§ 37 Presumption of validity of trial court verdict, generally
§ 38 Failure to show substantial justice not done
§ 39 Failure to allege errors at trial
§ 40 Lack of statutory authority to order new trial
§ 41 Statute mandating new trial
3 Failure or Inability to Complete Partially Transcribed Notes
§ 42 Failure to demonstrate insufficiency of transcription
§ 43 Failure to ascertain completeness
§ 44 Failure to show harm
B Attempt to Settle Record or Agree to Facts
§ 45 Impossibility of reconstruction, generally
§ 46 Attempt not required
§ 47 Inability to agree to facts
§ 48 Agreed or settled record possible
§ 49 Substitute record prepared
§ 50 Different counsel on appeal; former counsel unavailable
§ 51 Former counsel unable to sufficiently recall facts
§ 52 Statement refused by court
Research References

—

INDEX

Abuse of discretion §§ 34, 35[d], 46

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Accessory before the fact to uttering § 6
Accounting, action for § 34
Agreement on facts, attempt to reach §§ 22- 28, 45- 52
Alcohol §§ 13, 15, 35[e]
Amendment to statute § 41
Appeal, adequacy of transcript prepared by other reporter to obtain § 29
Application verified § 40
Arguments to jury omitted § 5
Armed robbery § 6
Assault with intent to maim § 16
Assets, distribution of § 48
Assistance of counsel inadequate § 9
Automobiles §§ 30, 49
Availability of original court officials §§ 9, 14, 21, 26, 28, 45, 50
Bank robber § 3
Bill of exceptions §§ 14, 15, 31, 34, 37, 40, 47- 50
Bonds and securities §§ 12, 33, 41
Bonds and undertakings § 33
Bootleggers § 15
Breaking and entering with intent to commit a felony §§ 25, 26
Bribe solicitation § 27
Building costs, action to recover § 35[a]
Burglary §§ 10, 25
Capital punishment § 22
Case made, failure to request § 13
Casualty, unavoidable § 40
Certification §§ 7, 21, 24, 27, 31
Change in state constitution § 11
Channels, right to use certain § 35[e]
Charitable membership corporation § 48
Check, interstate transportation of forged § 5
Chief court stenographer §§ 30, 31
City councilman § 27
City defendant §§ 34, 47
Civil cases §§ 29- 52
Co-conspirators' statements omitted § 5
Cocaine, conspiracy to import § 3
Colloquy between counsel or court and counsel § 3
Comment and summary § 2
Committee of experts, transcript prepared by § 5
Compensation for services action § 48
Complete transcript, failure to request § 20
Completeness of partially transcribed notes, failure to ascertain § 43
Conspiracy §§ 3, 5
Constitutional law §§ 9, 11, 32, 40
Contract action §§ 30, 31, 44, 49, 52
Corporation §§ 44, 48, 49
Costs §§ 11, 12, 35[a], 48
Councilman § 27

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Counterfeiting §§ 5, 6
Court officials §§ 9, 14, 21, 26, 28, 30, 31, 45, 50
Criminal cases §§ 3- 28
Crops, action to recover damages to § 34
Cross-examination § 44
"Crucial" portion missing § 3
Daughter plaintiff § 11
Death action §§ 47, 52
Death of original court official §§ 21, 28, 45
Death penalty § 22
Defense §§ 5, 7
Delay §§ 34, 35
Destruction of original file § 42
Different counsel §§ 26, 50
Diligence §§ 14, 34, 35
Disagreement on facts §§ 23, 24
Discretion, abuse of §§ 34, 35[d], 46
Disorderly conduct, reporter jailed for § 35[e]
Distribution of funds and assets § 48
Ditches §§ 34, 35[e]
Divorce §§ 34, 35[a], 41, 46, 48, 49
Driving while intoxicated § 13
Drunkenness §§ 13, 35[e]
Due process §§ 9, 11
Employment §§ 33, 44, 49
Equal protection § 11
Equity §§ 34, 38, 40
Equivalent picture of proceedings, failure of state to provide § 18
Error §§ 12, 19, 30, 36, 37, 39, 40
Escapee, prison § 7
Examination §§ 12, 44
Exceptions §§ 14, 15, 22, 23, 25, 31, 34, 37, 40, 47- 50
Executive defendants §§ 44, 49
Exhaustion of reasonable means and methods § 35[c]
Expenses §§ 11, 12, 35[a], 48
Experts, transcript prepared by committee of § 5
Extension of time for filing denied § 34
Eyesight impaired §§ 34, 35[a], 36, 45
Fairness of proceedings § 37
Father defendant §§ 11, 40
Felony, breaking and entering with intent to commit §§ 25, 26
Findings of judge omitted § 6
Force transcription, failure to § 35[b]
Forgery §§ 5, 24
Formal bill § 20
Former counsel §§ 50, 51
"For other reasonable cause" § 38
Fraud §§ 5, 12, 22, 24
Free transcript § 11

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Funds, distribution of § 48
Good faith § 35[a]
Grand larceny § 19
Habeas corpus petition §§ 9, 11, 15
Hardship §§ 37, 41
Harm, failure to show where notes partially transcribed § 44
Hearings §§ 15, 35[c]
Heart attack suffered by reporter § 35[b]
Hotel keepers § 22
House owners § 35[a]
Hung jury § 15
Husband and wife §§ 12, 34, 35[a], 41, 46- 49
Identification procedures by police alleged suggestive § 6
Illegible notes §§ 3, 7, 11, 13, 19, 22, 25- 27, 39, 40, 47
Illness of reporter at trial § 34
Impartiality of proceedings § 37
Import of cocaine, conspiracy for § 3
Improprieties of trial ascertained by transcript of other reporter § 4
Inaccuracies §§ 30, 47
Incest § 11
Indigents §§ 11, 12, 27
Indirect appeals by indigent defendants § 11
Informative verified application § 40
Inherent authority of equity court §§ 34, 38
Injunction to abate nuisance § 46
Insanity defense § 7
Inspection of evidence § 46
Instructions to jury §§ 5, 11
Intent §§ 16, 25, 26, 35[e]
Interstate transportation of a forged check § 5
Intoxicating liquor §§ 13, 15, 35[e]
Introduction § 1
Irrigation ditch § 34
Judgment, judge deceased prior to § 45
Jurisdiction §§ 17, 25, 37, 40, 48
Jury §§ 5, 6, 12, 15, 21
Labor supplier § 33
Laches § 35
Landowner §§ 35[a], 40, 42, 48
Larceny §§ 19, 27
Lateral support action §§ 42, 48
Loss of notes § 21
Lumber contract, recission of §§ 30, 31
Machine user plaintiff § 48
Maim, assault with intent to § 16
Malfeasance § 27
Master and servant §§ 33, 44, 49
Materials supplier § 33
Memory §§ 12, 16, 25, 27, 28, 47, 48, 51

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Mental hospital, court reporter committed to § 6
Merits §§ 9, 25
Military service, defendant in § 34
Misfortune, unavoidable § 40
Mistake §§ 12, 19, 30, 36, 37, 39, 40
Motor vehicle §§ 13, 30, 49
Municipality defendant §§ 34, 47
Murder §§ 7, 9, 11, 14, 18, 22, 23, 27, 28
Narrative form §§ 9, 25, 26, 28, 47- 49, 52
Newspaper reports § 15
News reporter § 15
New trial, lack of authority to order §§ 17, 40
Notice § 35[d], 35[e]
Nuisance § 46
Objections §§ 5, 11, 22, 23, 25
Official status of reporter § 29
Omissions §§ 3, 5, 6, 12, 42, 47
Original court officials, availability of §§ 9, 14, 26, 28, 45, 50
Original file destroyed § 42
Other reporter preparing transcript §§ 3- 7, 29- 31
Outline of testimony § 27
Partially transcribed notes, failure or inability to complete §§ 19- 21, 42- 44
Partnership §§ 34, 46
Paternity suit § 40
Pedestrian struck by motor vehicle § 49
Personal injury action §§ 30, 31, 34, 35[b], 46, 49
Petition in error § 19
Police, suggestive identification procedures alleged § 6
Practice pointers § 2[b]
Prejudice §§ 6, 12, 52
Preliminary hearing testimony preserved § 15
Preliminary matters §§ 1, 2
Preservation of evidence, lack of § 16
Presumptions §§ 6, 11, 37
Prison escapee § 7
Probate of will § 34
Prohibition Act § 15
Property dispute §§ 40, 42, 47, 48, 51
Publication § 15
Purchase price, recovery of § 48
Question of fact § 29
Quiet title action §§ 35[d], 51
Rape §§ 6, 8, 11, 17, 25
Rate for transcription reduced or eliminated §§ 11, 12
Receiving stolen goods § 27
Recollection §§ 12, 16, 25, 27, 28, 47, 48, 51
Reconstruction of record impossible §§ 19, 21, 45
Record of other proceedings available § 15
Refusal of statement by court §§ 28, 52

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Regularity of proceedings §§ 6, 11, 37, 39
Related matters § 1[b]
Reliability of statement of facts questioned § 28
Reliance on reporter for transcript § 36
Relief, delay in requesting § 35[e]
Reluctance to undertake transcription § 14
Request for transcript, generally §§ 10, 20, 35[a]
Rescission of contract action §§ 30, 31, 52
Resignation of counsel § 25
Retired judge § 48
Reversible error § 12
Review, adequacy of transcript prepared by other reporter to obtain § 29
Riparian rights § 40
Robbery §§ 3, 6, 8, 21
Sales §§ 48, 49
Scope of annotation § 1[a]
Securities and bonds §§ 12, 33, 41
Settlement of record, attempt to reach §§ 22- 28, 45- 52
Sex crimes §§ 6, 8, 11, 17, 25
Shorthand system §§ 6, 14, 15, 25, 33
Solicitation of bribe § 27
Specialists' transcription § 7
Spouse §§ 12, 34, 35[a], 41, 46- 49
Stipulated record prepared by counsel § 27
Style of reporter § 21
Substantial justice not done, failure to show § 38
"Substantial" portion missing § 3
Substitute record prepared § 49
Summary and comment § 2
Surety bond, action to recover § 33
Time §§ 5, 10, 12, 25, 34, 35
Trial §§ 3- 21, 29- 44
Trustee § 41
Uttering §§ 6, 24
Verdict, generally §§ 11, 37
Verified application § 40
Voir dire §§ 6, 12
Waiver § 5
Water §§ 34, 35[e], 40
Widow plaintiff § 47
Wife and husband §§ 12, 34, 35[a], 41, 46- 49
Will, probate of § 34
Witness' ability to testify omitted § 5
Wrongful death action §§ 47, 52

Table of Cases, Laws, and Rules

Supreme Court

Chessman v. Teets, 354 U.S. 156, 77 S. Ct. 1127, 1 L. Ed. 2d 1253 (1957) — 4, 27

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Norvell v. State of Ill., 373 U.S. 420, 83 S. Ct. 1366, 10 L. Ed. 2d 456 (1963) — 11

Second Circuit
United States v. Di Canio, 245 F.2d 713 (2d Cir. 1957) — 3

Fourth Circuit
Pisani v. Warden, Md. Penitentiary, 289 F. Supp. 232 (D. Md. 1968) — 11

Fifth Circuit
U.S. v. Renton, 700 F.2d 154, 12 Fed. R. Evid. Serv. 1040 (5th Cir. 1983) — 5, 6

Sixth Circuit
Dowling v. U.S., 22 F.2d 364 (C.C.A. 6th Cir. 1927) — 15
Herring v. Kennedy-Herring Hardware Co., 261 F.2d 202 (6th Cir. 1958) — 2[b], 48

Seventh Circuit
U.S. v. Pigg, 471 F.2d 843 (7th Cir. 1973) — 5

Ninth Circuit
Watsabaugh & Co. v. Seaboard Surety Co., 106 F.2d 355 (C.C.A. 9th Cir. 1939) — 2[b], 33

Tenth Circuit
U.S. v. Pilling, 721 F.2d 286, 14 Fed. R. Evid. Serv. 1162 (10th Cir. 1983) — 3

Alabama
Edwards v. State, 628 So. 2d 1021 (Ala. Crim. App. 1993) — 7
Smith v. State, 346 So. 2d 465 (Ala. Crim. App. 1976) — 2[b]
Steen, Ex parte (1983, Ala) 431 So 2d 1385, 57 ALR4th 1037 — 2[b], 12

Arizona
Rodriquez v. Williams, 104 Ariz. 280, 451 P.2d 609 (1969) — 2[b]

California
Aylmer v. Aylmer, 139 Cal. App. 2d 696, 294 P.2d 98 (4th Dist. 1956) — 35[d]
Caminetti v. Edward Brown & Sons, 23 Cal. 2d 511, 144 P.2d 570 (1943) — 35[b], 35[e]
Conlin v. Coyne, 19 Cal. App. 2d 78, 64 P.2d 1123 (2d Dist. 1937) — 2[b], 42, 48
Conlin v. Coyne, 15 Cal. App. 2d 569, 59 P.2d 884 (2d Dist. 1936) — 2[b]
Delafield v. Searle Aero Industries, 76 Cal. App. 2d 862, 174 P.2d 455 (2d Dist. 1946) — 44, 49
Duarte v. Rivers, 90 Cal. App. 2d 152, 202 P.2d 612 (4th Dist. 1949) — 2[b], 35[e]
Feldman v. Katz, 160 Cal. App. 2d 836, 325 P.2d 597 (2d Dist. 1958) — 46, 51
Fickett v. Rauch, 31 Cal. 2d 110, 187 P.2d 402 (1947) — 2[b], 34, 46
Kroeker v. Jack, 51 Cal. App. 2d 272, 124 P.2d 619 (4th Dist. 1942) — 2[b], 39
Moore v. Specialty Oil Tool Co., 128 Cal. App. 662, 18 P.2d 82 (4th Dist. 1933) — 37
Norris v. Norris, 50 Cal. App. 2d 726, 123 P.2d 847 (1st Dist. 1942) — 49
People v. Chessman, 52 Cal. 2d 467, 341 P.2d 679 (1959) — 4
People v. Chessman, 35 Cal. 2d 455, 218 P.2d 769, 19 A.L.R.2d 1084 (1950) — 4
Smith v. Orange Belt Supply Co., 58 Cal. App. 2d 848, 137 P.2d 845 (4th Dist. 1943) — 50
Weisbecker v. Weisbecker, 71 Cal. App. 2d 41, 161 P.2d 990 (2d Dist. 1945) — 34, 46

Colorado
Pierpoint v. Akin, 76 Colo. 478, 232 P. 682 (1925) — 35[b], 48
Shafer v. King, 82 Colo. 258, 259 P. 1042 (1927) — 34

Connecticut

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Dudley v. Hull, 105 Conn. 710, 136 A. 575 (1927) — 38

Delaware
Wallace v. State, 58 Del. 521, 211 A.2d 845 (1965) — 27

Florida
Bennett v. State, 196 So. 2d 449 (Fla. 1st DCA 1967) — 27
Burton v. State, 128 So. 2d 765 (Fla. 2d DCA 1961) — 6
Simmons v. State, 200 So. 2d 619 (Fla. 1st DCA 1967) — 25, 26
Werner v. Harper, 328 So. 2d 511 (Fla. 1st DCA 1976) — 52
Yancey v. State, 267 So. 2d 836 (Fla. 4th DCA 1972) — 21

Hawaii
Hawaii, Territory of v. Montgomery, 38 Haw. 561, 1950 WL 6672 (1950) — 40

Idaho
State v. Ricks, 34 Idaho 122, 201 P. 827 (1921) — 17

Illinois
People v. Bragg, 16 Ill. 2d 336, 157 N.E.2d 57 (1959) — 14
People v. McKee, 25 Ill. 2d 553, 185 N.E.2d 682 (1962) — 2[b], 11, 28
People v. Norvell, 25 Ill. 2d 169, 182 N.E.2d 719 (1962) — 11

Indiana
Phillips v. Elliott, 129 Ind. App. 498, 158 N.E.2d 295 (1959) — 40

Iowa
Dunbarton Realty Co. v. Erickson, 143 Iowa 677, 120 N.W. 1025 (1909) — 32, 40
McKinley v. McKinley, 123 Iowa 574, 99 N.W. 162 (1904) — 35[a]

Louisiana
Biggers v. Temple Iron Works, Inc., 108 So. 2d 808 (La. Ct. App. 2d Cir. 1959) — 46
Daunis v. Maryland Cas. Co., 108 So. 2d 809 (La. Ct. App. 2d Cir. 1959) — 35[b], 46
Harper v. Harper, 236 La. 458, 107 So. 2d 704 (1958) — 46
State v. Mastricovo, 221 La. 312, 59 So. 2d 403 (1952) — 20

Maine
Morin v Claflin31This action is one of a number of actions which were consolidated for appeal and is commonly referred to as "the Stenographer Cases." (1905) 100 Me 271, 61 A 782 — 37
Morin v Claflin32This action is one of a number of actions which were consolidated for appeal and is commonly referred to as "the Stenographer Cases." (1905) 100 Me 271, 61 A 782 — 40
State v. Heald, 322 A.2d 68 (Me. 1974) — 7

Massachusetts
Brooks v. National Shawmut Bank of Boston, 323 Mass. 677, 84 N.E.2d 318 (1949) — 2[b], 41
Com. v. Harris, 376 Mass. 74, 379 N.E.2d 1073 (1978) — 41

Michigan
People v. Drew, 26 Mich. App. 337, 182 N.W.2d 566 (1970) — 11
White Pine Lumber Co. v. Manufacturers' Lumber Co., 191 Mich. 390, 158 N.W. 124 (1916) — 30, 31

Minnesota
State v. Finn, 257 Minn. 138, 100 N.W.2d 508 (1960) — 7
Thell v. Ramus, 245 Minn. 409, 72 N.W.2d 618 (1955) — 29

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Missouri
Green v. Kansas City, Mo., 77 S.W.2d 652 (Mo. Ct. App. 1934) — 34, 48
Longmire v. Diagraph-Bradley Stencil Mach. Corp., 237 Mo. App. 553, 173 S.W.2d 641 (1943) — 40, 48
Pulem v. George, 433 S.W.2d 83 (Mo. Ct. App. 1968) — 49
Richeson v. Hunziker, 349 S.W.2d 50 (Mo. 1961) — 52
State v. Thompson, 130 Mo. 438, 32 S.W. 975 (1895) — 16, 48

Montana
Jackson, State ex rel. v. District Court of Second Judicial Dist. in and for Silver Bow County, 107 Mont. 30, 79 P.2d 665 (1938) — 41

New York
Bergman, People ex rel. v. Morhous, 264 A.D. 978, 37 N.Y.S.2d 177 (3d Dep't 1942) — 10
Kay v. Kay, 277 A.D. 797, 97 N.Y.S.2d 607 (2d Dep't 1950) — 48
Lidgerwood Mfg. Co. v. Rogers, 56 N.Y. Super. Ct. 350, 4 N.Y.S. 716 (1889) — 48
People v. Bergman, 171 Misc. 946, 14 N.Y.S.2d 200 (County Ct. 1939) — 10
People v. Foreman, 13 A.D.2d 500, 212 N.Y.S.2d 338 (2d Dep't 1961) — 8
People v. Harrell, 115 A.D.2d 943, 497 N.Y.S.2d 518 (4th Dep't 1985) — 8
People v. Jackson, 36 A.D.2d 1008, 321 N.Y.S.2d 451 (4th Dep't 1971) — 8
People v. Keefe, 254 A.D. 683, 3 N.Y.S.2d 473 (2d Dep't 1938) — 8
People v. Schwach, 16 A.D.2d 879, 228 N.Y.S.2d 373 (4th Dep't 1962) — 8
People, on Complaint of Berry, v. DeWilkowska, 246 A.D. 285, 285 N.Y.S. 430 (1st Dep't 1936) — 22
Richmond County Soc. for the Prevention of Cruelty to Children, Application of, 8 Misc. 2d 123, 165 N.Y.S.2d 861 (Sup 1957) — 48
Stewart v. Garland, 3 A.D.2d 685, 159 N.Y.S.2d 75 (3d Dep't 1957) — 48

North Carolina
State v. Allen, 4 N.C. App. 612, 167 S.E.2d 505 (1969) — 27
State v. Neely, 26 N.C. App. 707, 217 S.E.2d 94 (1975) — 6
State v. Neely, 21 N.C. App. 439, 204 S.E.2d 531 (1974) — 6

North Dakota
Coan v. Plaza Equity Elevator Co., 60 N.D. 51, 232 N.W. 298 (1930) — 34
Zimmerman v. Kitzan, 77 N.D. 477, 43 N.W.2d 822 (1950) — 34

Ohio
Searles v Cowdrick (1912) 21 Ohio CC NS 378, 35 Ohio CC 224 — 37, 40

Oklahoma
Butts v. Anderson, 1907 OK 101, 19 Okla. 367, 91 P. 906 (1907) — 37, 40, 48
Duncan, City of v. Abrams, 1935 OK 452, 171 Okla. 619, 43 P.2d 720 (1935) — 34, 47
Harris v. First Nat. Bank, 1929 OK 491, 140 Okla. 269, 282 P. 1097 (1929) — 36, 45
James v. Atlas Fishing Tools, Inc., 1962 OK 270, 377 P.2d 214 (Okla. 1962) — 35[c]
Laffoon v. Kantor, 1962 OK 155, 375 P.2d 961 (Okla. 1962) — 43, 48
Lee v. Pierce, 1925 OK 756, 112 Okla. 212, 239 P. 989 (1925) — 31
Moore v. State, 59 Okla. Crim. 372, 61 P.2d 1134, 107 A.L.R. 598 (1934) — 15
O'Neal v. State, 1969 OK CR 82, 450 P.2d 913 (Okla. Crim. App. 1969) — 19
Pierce v. State, 1971 OK CR 513, 492 P.2d 329 (Okla. Crim. App. 1971) — 7
Strickland v. State, 1965 OK CR 85, 403 P.2d 909 (Okla. Crim. App. 1965) — 13
Turman v. Pruitt, 1964 OK 257, 397 P.2d 652 (Okla. 1964) — 34

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Pennsylvania
Battle v. Manko, 175 Pa. Super. 221, 103 A.2d 281 (1954) — 35[a]
Com. v. Anderson, 441 Pa. 483, 272 A.2d 877 (1971) — 18
Com. v. DeSimone, 447 Pa. 380, 290 A.2d 93 (1972) — 18
Com. v. Dixon, 253 Pa. Super. 383, 385 A.2d 391 (1978) — 18
Com. v. Goldsmith, 452 Pa. 22, 304 A.2d 478 (1973) — 18
Emerick v. Carson, 325 Pa. Super. 308, 472 A.2d 1133 (1984) — 30, 31
Waugaman v. Henry, 75 Pa. Super. 94, 1920 WL 1603 (1920) — 30, 31

Puerto Rico
Reyes Oyola v Delgado (1960) 81 Puerto Rico 906 — 9

Rhode Island
McSherry v. Peckham, 50 R.I. 473, 149 A. 380 (1930) — 49

South Carolina
Southern Pine Lumber Co. v. Martin, 118 S.C. 319, 110 S.E. 804 (1921) — 49

Texas
Brannan v. State, 137 Tex. Crim. 611, 132 S.W.2d 594 (1939) — 25
Caffee v. McBee, 142 S.W.2d 581 (Tex. Civ. App. Galveston 1940) — 34, 47
Crawford v. Crawford, 181 S.W.2d 992 (Tex. Civ. App. San Antonio 1944) — 49
Gibbs v. Crittenden, 262 S.W.2d 804 (Tex. Civ. App. Waco 1953) — 34
Hernandez v. JLG Industries, Inc., 905 S.W.2d 778 (Tex. App. San Antonio 1995) — 8
Koonce v. City of Mesquite, 382 S.W.2d 309 (Tex. Civ. App. Tyler 1964) — 48
Little v. State, 131 Tex. Crim. 164, 97 S.W.2d 479 (1936) — 22, 23
McNabb v. State, 137 Tex. Crim. 463, 132 S.W.2d 273 (1939) — 25
Pacific Greyhound Lines v. Burgess, 118 S.W.2d 1100 (Tex. Civ. App. Amarillo 1938) — 47
Seliger v. State, 139 Tex. Crim. 26, 138 S.W.2d 817 (1940) — 25
Thomas v. State, 144 Tex. Crim. 533, 164 S.W.2d 852 (1942) — 24
Victory v. Hamilton, 127 Tex. 203, 91 S.W.2d 697 (Comm'n App. 1936) — 47
Williams v. State, 427 S.W.2d 868 (Tex. Crim. App. 1967) — 6

Washington
State v. Evans, 145 Wash. 4, 258 P. 845 (1927) — 27

Wisconsin
Pacific Nat. Fire Ins. Co. v. Irmiger, 254 Wis. 207, 36 N.W.2d 89 (1949) — 45

I. Preliminary Matters

§ 1[a] Introduction—Scope

This annotation[1] collects and analyzes those state and federal cases in which the courts discussed whether, or under what circumstances, a new trial or reversal was necessary or proper because a court reporter died or became disabled before he transcribed or completed his notes.[2]

A number of jurisdictions may have rules, regulations, constitutional provisions, or legislative enactments bearing upon this subject. Since these are discussed herein only to the extent that they are reflected in the reported cases within the scope of this annotation, the reader is advised to consult the appropriate statutory or regulatory compilations.

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§ 1[b] Introduction—Related matters

Related Annotations are located under the Research References heading of this Annotation.

§ 2[a] Summary and comment—Generally

In jurisdictions which require a reporter's transcript in addition to a bill of exceptions to perfect an appeal[3] or in jurisdictions in which the appellant has the option to perfect an appeal by presenting a reporter's transcript in lieu of a bill of exceptions,[4] the courts are often required to determine the rights of an appellant when a transcript is unavailable. Generally speaking, a ground for granting a new trial exists in the fact that the appellant is unable to perfect an appeal because of the loss or destruction of part of the record.[5] Thus, when death or disability prevents the court reporter who recorded the trial from transcribing his notes, courts are often required to decided whether the trial court's judgment should be reversed and a new trial ordered so that the losing party will have another opportunity to have the evidence taken down and brought to the appellate court for review.

Although the due process clause of the Fourteenth Amendment does not require a state to afford a defendant an appeal from a criminal conviction, it does require states to make available some form of corrective process whereby the defendant in a criminal proceeding can secure a determination of a claimed violation of rights granted him or her under the Federal Constitution.[6] It is not surprising therefore that criminal defendants have claimed that this right to review was violated where the court reporter at the trial died or became disabled before his or her notes were transcribed, thus precluding the reviewing body from obtaining an adequate record on which to base its determination. Absent an opportunity for adequate review, the criminal defendant may well argue that the only relief available is reversal or a new trial.

The death or disability of a court reporter in a criminal case before the trial notes have been transcribed does not preclude a substitute reporter from transcribing the deceased or disabled reporter's notes. In some situations in which this has been done, it has been held that the defendant was not entitled to a new trial where there were only slight or insignificant omissions in the transcript prepared (§ 3), so long as the transcript as a whole was adequate to ascertain any trial improprieties (§ 4). Moreover, failure by the defendant to object to omissions in the substitute transcript (§ 5) or to show prejudice by its use (§ 6) have been held to preclude the granting of a new trial. Furthermore, even if the defendant raises objections to the substitute transcript, it has been held that a new trial will not be granted if the transcript has been certified as being correct by the trial judge or court reporter (§ 7).

At times, the defendant in a criminal case is unable to obtain even a partial transcript of the trial testimony because a substitute reporter cannot transcribe the notes of the original reporter who has either died or become disabled since trial. In one group of cases in which this situation arose, the courts held that a new trial must be granted where it was impossible to obtain a transcript because of the death of the court reporter (§ 8). Although the unavailability of a transcript and the impossibility of preparing a record for appeal by other means has been found to be a constitutional ground for the granting of a new trial (§ 9), a new trial may be denied to a defendant who does not make a timely request for a transcript (§ 10). Likewise, courts have found that the inability of the state to furnish a free transcript to which an indigent defendant is entitled in an indirect appeal does not automatically warrant the grant of a new trial (§ 11).

One court has ordered a new criminal trial where the time and expense required to have been expended to have the deceased reporter's notes transcribed by another reporter would have been prohibitive (§ 12).

Failure to request a case made (§ 13), to make a diligent effort to decipher the deceased reporter's notes (§ 14), or to preserve the evidence by other means (§ 16) have been held to be grounds for the denial of a new criminal trial as has the availability of the record of a prior proceeding (§ 15). While some courts have found that they were without authority to grant a new criminal trial upon the death or disability of a court reporter (§ 17), another has found that it has the authority to grant a new criminal trial because the transcript is unavailable when the state is unable to provide an "equivalent picture" of the proceedings below (§ 18).

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On occasion the notes from a criminal trial have been partially transcribed by the court reporter before he or she died or became disabled and the transcript has not been completed by another court reporter. When faced with failure or inability to complete the deceased or disabled reporter's partially transcribed notes, some courts have granted the motion for a new trial when there was no possibility of reconstructing the record (§ 19). However, where the moving party requested transcription of only part of the record before the reporter's death, it has been held that that party will not be allowed to complain that the entire record has not been transcribed (§ 20). Similarly, the trial judge's reconstruction of challenged jury instructions has been found to eliminate the need for a new trial (§ 21).

When a reporter's transcript is unavailable for use in a criminal appeal, an agreed or settled statement of facts may be used in its place.[7] The availability of such a statement precludes the granting of a new trial (§ 27). However, when the parties are unable to agree to (§§ 22- 23) or remember (§ 25) the facts, a new trial has been granted. The inability of an appellate attorney who did not represent the defendant at trial to stipulate to an agreed statement has also been found to be grounds for a new trial (§ 26). The agreement of the parties was found not to be necessary, however, when a statement was prepared and certified by the trial judge (§ 24). Moreover, a court has been held to have the authority to refuse to accept a statement prepared by a party when it has doubts about the reliability of the statement (§ 28).

In civil litigation, the use of a transcript prepared by another reporter from the deceased or disabled reporter's notes has been upheld, and a motion for a new trial denied, when the transcript was adequate to allow appellate review (§ 29), when the moving party failed to show inaccuracies in it (§ 30), and when it was certified to be correct (§ 31).

When the moving party in a civil case has failed or was unable to have the reporter's notes transcribed, it has been held that there was no constitutional right to a new trial because the unavailability prevented the perfection of the appeal (§ 32). Nevertheless, as a general rule, a civil litigant has been found to be entitled to a new trial if a diligent effort has been made to obtain a transcript (§ 34), although a litigant who fails to show that the deceased or disabled reporter's notes cannot be transcribed has been denied a new trial (§ 33). Moreover, delay in requesting a transcript (§ 35[a]), failure to compel transcription (§ 35[b]), delay in attempting transcription (§ 35[c]), and delay in requesting relief (§ 35[e]) have been found to be grounds for the denial of a new trial. On the other hand, promptness in notifying the court of the need for a transcript which was unavailable has been looked upon favorably in granting a new trial (§ 35[d]) and relying on the court reporter to provide a transcript has been held not to be grounds for the denial of a motion for a new trial when the transcript was not forthcoming because of the reporter's death or disability (§ 36).

A presumption of validity in the trial court's verdict in a civil action has been held to exist (§ 37) and absent some showing that substantial justice has not been done (§ 38) or error has been committed (§ 39), the verdict at trial will not be overturned when a transcript is unavailable because of the reporter's death or disability. Moreover, as in the case of criminal appeals, some civil courts have found that they were without authority to grant a new trial when the notes of a deceased or disabled reporter could not be transcribed (§ 40), whereas other courts have found that they were compelled by statute to order a new trial in such a situation (§ 41).

As in criminal cases, court reporters in civil actions have sometimes begun the transcription of their notes before they died or became disabled. In such a situation, the failure to show that the record made from the partially transcribed notes of a deceased or disabled reporter was insufficient has been held to justify the denial of a new civil trial (§ 42). Similarly, new civil trials have been denied where there was a failure to ascertain the completeness of the record completed before death (§ 43), or a failure to show harm in the trial court's refusal to grant a new trial where the reporter had completed a large part of the record before his death (§ 44).

When a reporter's transcript is unavailable in civil cases, an agreed or settled statement may be submitted in its place. If, however, there is no way to present the record for appeal except by the use of a reporter's transcript which is unavailable, a new trial has been awarded (§ 45). Some courts have found that the moving party is not required to attempt to prepare an agreed or settled

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record as a prerequisite to the granting of a new trial (§ 46), but those which do make such a requirement have granted new trials when the parties were unable to agree to the facts (§ 47).

Some courts have refused to overturn a verdict and award a new trial in a civil proceeding when the evidence demonstrated that an agreed or settled record could be prepared (§ 48) or had been prepared (§ 49). However, some courts have refused agreed statements submitted by the parties in lieu of a transcript, and granted new trials, where the statements were insufficient to enable the courts to fairly and accurately evaluate the merits on appeal (§ 52).

Representation by different counsel on appeal than at a civil trial can make it impossible to stipulate to an agreed statement. One court has found that the inability of appellate counsel to stipulate because the trial counsel was unavailable to assist him was insufficient grounds for a new trial (§ 50). However, another court has held that the inability of appellate counsel to stipulate because the trial counsel could not sufficiently recall the facts was grounds for a new trial (§ 51).

§ 2[b] Summary and comment—Practice pointers

While in a civil case the duty to prepare and file the record rests on the appellant,[8] in a criminal case the duty of preparing the record for appeal may rest on the state[9] or the appellant.[10] In either a civil or criminal case, counsel should be aware that the trial court is the proper forum for a determination of fault for failure to file the record and for a determination of whether it is possible and feasible for a transcript to be prepared.[11] Furthermore, practitioners in the federal courts should be aware that the authority to grant a new trial under Rule 59(a) or to relieve a party from a final judgment under Rule 60(b), Federal Rules of Civil Procedure, rests with the District Court, not the Court of Appeals.[12]

In a criminal case, when the loss of an essential part of the record will prevent the defendant from receiving effective appellate review, counsel should file in the court in which the appeal is pending, a motion to suspend the progress of the appeal and to reinstate the trial court's jurisdiction over the case for the limited purpose of hearing evidence, making findings, and entering an order granting or denying a new trial.[13] In a civil case, the proper procedure is to file in the court in which the appeal is pending, a motion to suspend the progress of the appeal and to reinstate the trial court's jurisdiction over the case for the limited purpose of reconstructing the record. Counsel should attach to his motion, a verified statement of facts showing his right to relief, alleging among other things the cause of the loss of the record, the materiality of the lost items, and the impossibility of reproducing them.[14]

Counsel offering a motion for a new trial should be prepared to show that the deceased court reporter's shorthand notes are not in a standard system of shorthand or cannot be easily or accurately transcribed by other reporters,[15] that he moved promptly upon the discovery of the reporter's death to obtain a transcript of the deceased reporter's notes from other court reporters,[16] and that he has attempted without success to obtain sufficient data upon which to base a bill of exceptions.[17] Likewise, where part of the record exists, a motion for a new trial should allege how much is missing and to what issues the missing portions relate.[18]

Should the motion for a new trial be denied by the trial court, appellate review is often available since an order denying a motion for a new trial is generally an appealable order.[19] However, since every presumption is in favor of the fairness and regularity of the proceedings in the trial court which led to the judgment, it is important that counsel assert the particular errors which he believes occurred at the trial, but which cannot be presented for appellate review because the reporter's death or disability prevents the preparation of a transcript.[20]

In jurisdictions which adhere to the distinction between proceedings in law and equity, a bill of review is the appropriate proceeding by which to seek reversal of a final decree in equity. Although such a bill is commonly granted only for errors of law apparent on the record, new evidence not susceptible of use at the trial and coming to light after the decree, and a new

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matter arising after the entry of the decree, counsel should endeavor to show that the death of a stenographer which prevents the preparation of a transcript of the testimony is a new matter arising after the entry of a decree.[21]

II. Criminal Cases

A. Transcript of Trial

1. Preparation by Another Reporter

§ 3. Slight or insignificant omissions, generally

The courts in the following cases held that new criminal trials were not required where transcripts prepared by substitute reporters using the trial notes of the deceased reporters contained only slight or insignificant omissions.

Observing that there is no rule of thumb to govern the action of a federal appeals court on an appeal from a criminal conviction in those instances where the court stenographer who reported the trial has died and another reporter has prepared the transcript from stenographic notes, the court in United States v Di Canio (1957, CA2 NY) 245 F2d 713, cert den 355 US 874, 2 L Ed 2d 79, 78 S Ct 126, held that slight omissions on 32 pages of a 204-page transcript occasioned by the second reporter's inability to read the deceased reporter's notes were not sufficient to warrant a reversal of a bank robber's conviction and the ordering of a new trial. Noting that it saw no distinction between civil and criminal appeals in that a new trial would be ordered only if necessary for the protection of a party's rights, the court found that all but a very few of the omissions were colloquy between counsel or between the court and counsel and that reconstruction of the missing portions of the transcript would be of little avail to the bank robber.

Refusing to grant a new trial in a conspiracy to import cocaine action because of the death of the court reporter and the inability of another court reporter to interpret a portion of the trial record for transcription purposes, the court in United States v Pilling (1983, CA10 Okla) 721 F2d 286, 14 Fed Rules Evid Serv 1162, held that the missing testimony had not been demonstrated to have constituted a substantial and significant portion of the record. The court ruled that, in order to require reversal and a new trial, it must be shown that the missing portion of the record is "substantial and crucial."

§ 4. Adequate to ascertain trial improprieties

A transcript prepared by a substitute reporter from a deceased reporter's notes was found by the court in the following case to be sufficient to allow it to ascertain whether there had been a fair trial, and therefore the defendant, who had been convicted of a felony, was denied a new trial.

Finding that a transcript prepared by a substitute reporter under court order from the notes of the original reporter, who died prior to transcribing his notes, was adequate to permit it to ascertain whether there had been a fair trial and whether there had been any miscarriage of justice, the court in People v Chessman (1950) 35 Cal 2d 455, 218 P2d 769, 19 ALR2d 1084, cert den 340 US 840, 95 L Ed 616, 71 S Ct 29, ruled that a convicted felon was not entitled to a new trial.[22] Noting that the death of a court reporter was not one of the grounds for a new trial enumerated in the Penal Code, the court held that if a record could be prepared in such a manner as to enable the court to pass upon the questions sought to be raised, there was no rational likelihood or legally cognizable possibility of injustice to the appealing defendant, even though a verbatim record certified by the official court reporter could not be supplied.

§ 5. Failure to object to omissions

In the following cases, the courts ruled that a criminal defendant's failure to object to omissions in the transcript prepared by a substitute reporter after the death of the court reporter without transcribing his notes prevented the granting of a new trial.

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Although the court in United States v Renton (1983, CA5 Tex) 700 F2d 154, 12 Fed Rules Evid Serv 1040, found that substantial portions of the record were missing, including portions of the argument to the judge concerning the admission of coconspirators' statements and the ability of a witness to testify after having heard portions of the trial, a defense motion, testimony on the final day of evidence, and jury arguments and instructions, it refused to grant a new trial to a person convicted of counterfeiting because of omissions in the trial transcript, which was prepared by the substitute reporter upon the death of the original court reporter, because the counterfeiter did not file any objections to the proceedings when given the opportunity to review the reconstructed transcript.

It was held in United States v Pigg (1973, CA7 Ill) 471 F2d 843, cert den 411 US 970, 36 L Ed 2d 693, 93 S Ct 2164, that a conviction for causing the interstate transportation of a forged check would not be reversed because of the death of the court reporter before transcribing his notes, where the present court reporter stated after reviewing the tape recordings and notes of the deceased stenographer that the transcript made under his supervision contained 95 percent of the testimony of the trial witnesses and the defendant had failed to raise any objection to the omissions when given the opportunity to do so. Noting that the transcript in this case was prepared by a committee of experts upon its order, and that the order provided that both parties were entitled to file any objections which they had to the contents of the transcript in the District Court within a reasonable time after it was submitted, the appellate court, finding that the defendant's counsel had failed to invoke this procedure to challenge the completeness of the transcript, ruled that the defendant could not avoid the consequences of his waiver by pressing his objections to the transcript in the appellate court. In addition, it was held that the government's response to the defendant's posttrial motions was an adequate record of the recollections of the U.S. Attorney as to the grounds asserted by the defendant's trial counsel for his various objections during the trial.

§ 6. Failure to demonstrate prejudice

The courts refused to overturn the following criminal convictions because the defendants failed to show that they were prejudiced by the use of a transcript prepared by a substitute reporter from a deceased or disabled reporter's notes.

A counterfeiter who made vague allegations of prejudice but did not allege that any specific errors were committed during the portions of his trial which were not included in the record prepared by a substitute reporter upon the death of the original reporter was held in United States v Renton (1983, CA5 Tex) 700 F2d 154, 12 Fed Rules Evid Serv 1040, not to be entitled to a new trial.

Refusing to overturn a conviction for being an accessory before the fact to uttering on the grounds that the trial court reporter had been committed to a state mental hospital before he could transcribe his notes of the testimony and that the trial court judge had died before the record was perfected, the court in Burton v State (1961, Fla App D2) 128 So 2d 765, cert den (Fla) 133 So 2d 645 and cert den 370 US 905, 8 L Ed 2d 401, 82 S Ct 1251, reh den 370 US 965, 8 L Ed 2d 834, 82 S Ct 1588, found that the appellant had failed to demonstrate any prejudice or unfairness in the record presented which was read and transcribed by another court reporter from the original reporter's notes. It was held that, although appellant alleged prejudice by reason of an omission in the record regarding testimony read by the original court reporter to the jury, such prejudice or unfairness in the record was not proven and the judgment of conviction should stand.

Denying an armed robber's motion for a new trial based on the absence of a complete transcript because of the death of the court reporter prior to the transcription of the trial proceedings and difficulties encountered by other reporters in interpreting the audiograph records and because of the method by which the notes of the trial were taken, the court in State v Neely (1975) 26 NC App 707, 217 SE2d 94, cert den and app dismd 288 NC 512, 219 SE2d 347, found that the defendant's contention that the trial court failed to conduct a proper voir dire was not specific enough to justify a determination that the defendant had been prejudiced by the incomplete transcript.[23] Noting that there is a presumption of regularity in a trial, the court found that while the record on appeal did not show the extent of the voir dire or the findings of the trial judge, the robber's general allegation of error did not point out in what respect the voir dire was improper or in what way there was a failure to apply constitutional standards. On the same grounds, the court found that the robber's allegation that police may have used impermissibly suggestive identification

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procedures and that errors in the admission and exclusion of evidence may have been committed were not sufficient grounds to entitle him to a new trial.

Absent a showing that a record, made by a court reporter with 17 years of experience, who used the same shorthand system as a deceased reporter, had known him, and was familiar with his work, was not what occurred at the trial and that a rapist's rights were prejudiced, the court in Williams v State (1967, Tex Crim) 427 SW2d 868, cert den 391 US 926, 20 L Ed 2d 665, 88 S Ct 1826, refused to grant a new trial to the convicted rapist, noting that he had three opportunities to demonstrate why the statement of facts prepared by the substitute reporter was not a full, accurate, and complete transcription of the notes taken at the trial.

§ 7. Certification

[Cumulative Supplement]

In the following cases, the courts held that the certification of a transcript prepared by another reporter upon the original reporter's death or disability following a criminal trial eliminated a convict's right to a new trial.

Where a second reporter was able to read and transcribe the notes of a court reporter who had died after trial, the court in State v Heald (1974, Me) 322 A2d 68, found that the trial judge had properly refused a prison escapee's motion for a new trial based on the deceased reporter's inability to personally certify the transcript since the trial judge's examination and comparison of the transcript made by the second reporter with notes made by the judge at trial was sufficient to enable him to certify that the transcript was a record of the entirety of the proceedings at the escapee's trial and was sufficiently accurate so as not to prejudice the escapee's rights on appeal. The court noted that while personal certification by the reporter who recorded the trial was the usual means of authenticating the transcript, it was not the exclusive means.

Finding that an incapacitated reporter's notes were sent to specialists for transcription and the transcript made by them had been certified to be reasonably complete and accurate by the trial court, the court in State v Finn (1960) 257 Minn 138, 100 NW2d 508, held that the jury had been properly instructed as to the defense of insanity and that even assuming that errors and omissions did occur, the evidence that was received during the murder trial was amply sufficient to sustain the verdict.

It was held in Pierce v State (1971, Okla Crim) 492 P2d 329, that a new criminal trial would not be ordered because of the death of the court reporter without transcribing his notes where a former county court reporter, who had prepared and certified other transcripts from the same deceased reporter's notes, was able to prepare a transcript which the trial judge certified to be a full, true, and correct transcript of the testimony as given at the original trial. Recognizing that state law required a new trial when it was impossible to prepare a transcript of a trial due to the death of the court reporter, the court nevertheless stated that this rule did not apply in the instant case because it was possible to prepare a transcript.

CUMULATIVE SUPPLEMENT

Cases:

Where original court reporter in criminal prosecution died, and original reporter's notes and/or tape recordings were transcribed by another official court reporter, certificate of latter that transcription was "true and correct to the best of my ability" was sufficient to establish adequacy of transcript. Edwards v State (1993, Ala App) 628 So 2d 1021.

[Top of Section]

[END OF SUPPLEMENT]

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2. Failure or Inability to Transcribe Notes

§ 8. Impossibility of obtaining transcript; generally

[Cumulative Supplement]

In the following criminal cases involving the inability to procure a transcript due to the death or disability of the court reporter, the courts, without discussing or indicating why the defendant was unable to procure a transcript by alternate means, held that they were entitled to have their convictions reversed and new trials ordered.

It was held in People v Keefe (1938) 254 App Div 683, 3 NYS2d 473, that in view of the death of the stenographer and the conceded inability to obtain a transcript of the minutes, there was no alternative other than to overturn the criminal conviction and direct a new trial.

Finding that a transcript of the minutes of the trial was not available because of the death of the court reporter, the court in People v Foreman (1961, 2d Dept) 13 App Div 2d 500, 212 NYS2d 338, granted the motion to overturn a conviction of rape and ordered a new trial.

Where an adequate and proper record on appeal could not be prepared and filed because the death of the court reporter prevented the defendant from procuring a transcript of the testimony, the court in People v Schwach (1962, 4th Dept) 16 App Div 2d 879, 228 NYS2d 373, held that the judgment of conviction must be reversed and a new trial granted.

The court in People v Jackson (1971, 4th Dept) 36 App Div 2d 1008, 321 NYS2d 451, ruled that the defendant in a criminal proceeding was entitled to a new trial, where the death of the court reporter, in the absence of any stenographic notes of the trial, foreclosed the defendant from having an appellate review of any of the evidence and rulings of the trial court.

Where the court reporter died before transcribing his notes, and no trial notes could be located, the court in People v Harrell (1985, 4th Dept) 115 App Div 2d 943, 497 NYS2d 518, held that a conviction for robbery must be reversed and new trial granted.

CUMULATIVE SUPPLEMENT

Cases:

Convicted defendants were entitled to new trial where, due to incapacitating disability, court reporter was unable to supply required statement of facts for use in defendants' appeal; reporter's disability in effect rendered statement of facts lost through no fault of appellants, thus warranting new trial. Hernandez v JLG Indus. (1995, Tex App San Antonio) 905 SW2d 778.

[Top of Section]

[END OF SUPPLEMENT]

§ 9. Constitutional right to new trial

The court in the following case ruled that a new trial should be granted to a criminal defendant on constitutional grounds where the defendant was unable to obtain a transcript due to the death of the court reporter without transcribing his notes and was unable, through no fault of his own, to prepare a statement by other means.

Holding that the inability to obtain a transcript due to the death of the court stenographer who recorded the case, taken separately, does not constitute a sufficient constitutional reason to grant a new trial where an alternate method of presenting the case for

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review, though it be inadequate for full review on the merits, is provided, the court in Reyes Oyola v Delgado (1960) 81 Puerto Rico 906, ruling on a habeas corpus petition, found that where the alternate method could not be used through no fault of the defendant, a new trial should be granted as a constitutional matter and not as a statutory matter, so as to permit a subsequent review of the criminal cause on the merits as required by due process considerations.[25] Observing that once the right to appeal is granted it becomes part of the due process of law and cannot be denied if the defendant is not at fault, the court ordered that the convicted murderer, who did not have adequate assistance of counsel at the time his original sentences were pronounced, who was unable at the time new sentences were rendered to obtain a transcript of his trial because the court reporter had died, and who could not prepare a narrative statement of the case because neither the judge who presided at the trial, nor the district attorney, nor a counsel for the defense were any longer officials of the court, be granted a new trial.

§ 10. Failure to make timely request for transcript

The death of the court reporter without transcribing his notes several months after the period in which to appeal had expired was held by the court in the following case not to be grounds to overturn a criminal conviction and grant a new trial since the convict had failed to make a timely request for a transcript during the statutory period.

It was held in People ex rel. Bergman v Morhous (1942) 264 App Div 978, 37 NYS2d 177, affd 295 NY 841, 66 NE2d 853, that a burglary conviction would not be overturned and a new trial granted where the official stenographer's death occurred several months after the statutory period within which to appeal expired and the convict had failed to request a transcript during the statutory period.[26] In addition, the court ruled that it had had no power to extend the statutory time within which to appeal.

§ 11. Indirect appeals by indigent defendants

In the following cases, the courts held that although an indigent criminal defendant was entitled to a free transcript for use on appeal, the inability of the state to furnish him with a transcript for use in an indirect appeal because of the death of the court reporter did not automatically warrant a new trial.

Holding that exact equality is no prerequisite of equal protection of the laws within the meaning of the Fourteenth Amendment, the court in Norvell v Illinois (1963) 373 US 420, 10 L Ed 2d 456, 83 S Ct 1366, reh den 375 US 870, 11 L Ed 2d 99, 84 S Ct 27, ruled that, in a situation where no transcript of the trial was available years later, due to the death of the court reporter, to an indigent criminal defendant for use in an indirect appeal, the state could without violation of the due process or equal protection clauses deny relief to those who, at the time of the trial, had a lawyer and who presumably had his continuing services for purposes of appeal and yet failed to pursue an appeal. Noting that some practical accommodation must be made when, through no fault of the state, transcripts of criminal trials are no longer available because of the death of the court reporter, the court held that the state may rest on the presumption that he who had a lawyer at the trial had one who could protect his rights on appeal. Thus the court found that the state was not required to grant a new trial to an indigent who because of his indigency was unable to procure a transcript immediately following his trial and who was unable due to the death of the court reporter to secure a trial transcript at a later date under the provisions of a subsequently enacted state law which granted such a transcript to every indigent person convicted of a crime.

Finding the decision in Norvell v Illinois (1963) 373 US 420, 10 L Ed 2d 456, 83 S Ct 1366, reh den 375 US 870, 11 L Ed 2d 99, 84 S Ct 27, to be controlling, a Federal District Court, ruling on a habeas corpus petition of a man convicted of rape and other sex crimes against his daughter in Pisani v Warden, Maryland Penitentiary (1968, DC Md) 289 F Supp 232, concluded that although the man was entitled to the transcript of his retrial which he did not receive because of his indigency and which was no longer available due to the death of the court reporter, it would not require the state to grant the father a belated indirect appeal or to release him because of an alleged error in his retrial which the state would have no opportunity to contest. Noting that where a transcript was no longer available the state could rest on the presumption that he who had a lawyer at the trial had one who could adequately protect his rights, the court found that since the convictions under attack occurred at a second trial

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at which petitioner was represented by the same attorney as at his first and the judge who tried such second trial was a member of the court which granted the motion for a new trial and was therefore fully aware of the errors which had been made at the first trial, there was a strong presumption of regularity in the trial proceedings.

In People v McKee (1962) 25 Ill 2d 553, 185 NE2d 682, cert den 374 US 810, 10 L Ed 2d 1033, 83 S Ct 1698, reh den 375 US 872, 11 L Ed 2d 102, 84 S Ct 31, the court, citing with approval People v Norvell (1962) 25 Ill 2d 169, 182 NE2d 719, affd 373 US 420, 10 L Ed 2d 456, 83 S Ct 1366, reh den 375 US 870, 11 L Ed 2d 99, 84 S Ct 27, held that an indigent person convicted of murder was not entitled to a new trial because of the state's inability on an indirect appeal to furnish him with a transcript based upon the death of the official court reporter and the inability of other reporters to read his notes.

Where a change in the state constitution 6 years after conviction grants a convicted murderer, who has been judged an indigent, the right to appeal, it was held in People v Drew (1970) 26 Mich App 337, 182 NW2d 566, that the court reporter's inability to transcribe the record of the murder trial due to illness and other stenographers' inability to read her notes did not automatically entitle the murderer to a new trial. Although finding that upon direct appeal the unavailability of a transcript of the trial might so impede enjoyment of a defendant's state constitutional right of appeal that a new trial might have to be ordered as a matter of course, the court refused to apply such a rigid rule in an indirect appeal, preferring to balance the rights of the convicted person to pursue delayed postconviction remedies and the right of the people to present their evidence against accused persons. Taking notice that the parties had stipulated that the reporter's notes cannot be deciphered and that an order had been entered so finding, and observing that the murderer's objections centered on the trial court's instructions to the jury and the verdict, the appellate court ruled that the trial court should hear further testimony of competent witnesses regarding the possibility of transcribing the trial judge's instructions to the jury and the verdict. It was held that if the instructions and verdict could not be transcribed, the judge should hear testimony on the murderer's assertions and make findings regarding their truthfulness. On the basis of his findings, he should then decide whether the murderer's motion for a new trial should be granted or denied.

§ 12. Time and expense prohibitive

The court in the following criminal case granted a new trial upon finding that the time and expense to be expended in having a substitute reporter transcribe the notes of the deceased reporter was prohibitive.

Where a husband and wife convicted of securities fraud were unable to obtain a transcript of their trials because of the death of the court reporter who recorded both trials, the state Supreme Court in Ex parte Steen (1983, Ala) 431 So 2d 1385, 57 ALR4th 1037, on remand (Ala App) 431 So 2d 1391, held that their convictions should be set aside and new trials granted, finding that only one other court reporter within the state was capable of transcribing the notes, and that because the notes and tapes from which the transcripts must be prepared had been found to contain omissions and unintelligible portions, it was virtually impossible under existing circumstances, including extended consumption of time and great expense, to have prepared any reasonably accurate transcripts of the trial proceedings. The court noted that such transcription would take approximately 1 year for the preparation of both transcripts, and that it was unlikely that the court reporter would be willing to transcribe the trial proceedings at the reduced rate to which she would be entitled if both husband and wife were deemed to be indigent. It was held that, since the husband and wife's allegations and contentions regarding prejudicial and reversible error that occurred during the trials involved almost every portion of the testimony and voir dire examination of the juries prior to their selection, the preparation of a succinct statement in lieu of the transcripts would not be feasible because it would be necessary to establish the entire transcript from memory.

§ 13. Failure to request case made

The court in the following case refused to overturn a conviction and grant a new trial upon the death of the court reporter without transcribing his notes where the criminal defendant failed to request that a transcript be made from the sound recordings of the trial.

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A conviction for operating a motor vehicle while under the influence was upheld and a request for a new trial denied in Strickland v State (1965, Okla Crim) 403 P2d 909, the appellate court affirming the District Court's finding that although the deceased reporter's notes could not be deciphered by another reporter, a case made could be made from the sound recordings which recorded the testimony during the trial and that neither the drunk driver nor his counsel had requested the preparation of the case made from the recordings within the time in which an appeal by case made could have been perfected.

§ 14. Diligent effort not made to decipher notes

The court in the following case refused to grant a new trial to a convicted murderer because a diligent effort had not been made to decipher the deceased reporter's notes.

The court in People v Bragg (1959) 16 Ill 2d 336, 157 NE2d 57, finding that a diligent effort had not been made by the state to decipher the deceased court reporter's notes, held that a convicted murderer was not entitled to a new trial since the judge who tried the case, the appointed attorney who represented the convict at trial, and the assistant state's attorney who conducted the prosecution were still available, and would, if necessary, assist in transcribing the notes and in preparing an adequate bill of exceptions. While the murderer presented affidavits from two court reporters to establish that it was not possible to transcribe the deceased reporter's notes, the court found that the affidavit of a court reporter who used a different shorthand system was not persuasive, and the affidavit of a retired court reporter savored more of personal reluctance to undertake the task than of its impossibility. The court held that the responsibility for preparing a transcript from the deceased reporter's notes rests primarily on the state, and that only in the event that a satisfactory record cannot be obtained after diligent and purposeful efforts had been made would the question of the convict's entitlement to a new trial arise.

§ 15. Record of other proceeding available

Motions for new criminal trials based upon the death of the court reporter before transcribing his notes were denied by the courts in the following cases where the trial judge found that a bill of exceptions could be prepared with the aid of the record from an earlier proceeding which was available.

Where the record of an earlier trial which ended with a hung jury existed, and the judge who presided over the first and second trials stated that his rulings during both trials were, in all substantial respects, the same, his charge to the jury was the same with certain changes and additions which he remembered, and concluded that, with the aid of the existing records, a sufficient fair bill of exceptions could be made up, the court in Dowling v United States (1927, CA6 Ky) 22 F2d 364, reh den (CA6) 23 F2d 679, held that it would not reverse the denial of a new trial by the trial court in the subsequent trial for a violation of the National Prohibition Act where the court reporter had died before transcribing his notes. Noting that the bootleggers' counsel have not at any time denied that the testimony, the questions involved, the rulings, and the charge were generally similar to those of the first trial, the court found that although the bootleggers contended that there were many differences in addition to those recited by the judge, they specified none of definite importance. It was held that since the bootleggers' counsel declined to undertake or to join in the effort, which seemingly might have been successful, to prepare a bill of exceptions which would have saved for review every existing vital question, they had lost their normal opportunity to be heard on appeal by their own volition and a new trial would not be ordered.

It was held in Moore v State (1934) 59 Okla Crim 372, 61 P2d 1134, 107 ALR 598, that the death of the stenographer who took the testimony at a trial before transcribing his notes, thereby depriving a convict of a literal transcript of the testimony of the witnesses and the proceedings at his trial, was not sufficient grounds for reversal, where it was evident that a substantial statement of the testimony and of the proceedings could be prepared since the testimony at the preliminary hearing in the convict's first trial, which ended in a mistrial, had been preserved, a transcript of his habeas corpus proceeding was available, one of the state's attorneys had taken notes during the course of the trial, and newspapers had published daily news reports of the trial made by news reporters who were in constant attendance at the trial. In addition it was found that other reporters, using the same shorthand system, were able to read a considerable portion of the notes taken at the trial. Satisfied that, with these

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aids, a statement of testimony and proceedings could have been made, the court reasoned that the convict was not entitled to a new trial because of the death of the court reporter.

§ 16. Failure to preserve evidence

In the following case in which a transcript was unavailable because of the death of the court reporter without transcribing his notes, the court found the criminal defendant's failure to attempt to preserve the evidence by other means to be grounds for the denial of a new trial.

Where the stenographer in an "assault with intent to maim" case became ill shortly after the trial ended and died one month later without having transcribed his notes, it was held in State v Thompson (1895) 130 Mo 438, 32 SW 975, that a reversal of the conviction was not warranted, since defendant's counsel, once he learned that the stenographer was ill, failed to act with due diligence to preserve the evidence in some other way, either from memory or by calling on the witnesses who had testified at the trial.

§ 17. Lack of authority to order new trial

The court in the following criminal case found that it was without jurisdiction to grant a new trial based upon the death of the court reporter before transcribing his notes.

Finding that its appellate power was limited to the review of any decision of the District Court and the reversal, affirmation, or modification of the same, the court in State v Ricks (1921) 34 Idaho 122, 201 P 827, held that it was without jurisdiction to grant a new trial to two men convicted of rape where the court reporter's death before preparing the transcript prevented the appellate court from effectively reviewing the decision below. Noting that its power to grant a new trial was dependent upon a reversal of the judgment to be reviewed on appeal, the court found that such review was precluded by the rapists' inability to comply with the statutory requirements on appeal. It was also held that the death of the reporter did not result in a deprivation of any constitutional right to be heard on appeal or constitute a ground for reversing the conviction.

§ 18. Failure of state to provide "equivalent picture" of proceedings below

In the following cases, the courts found that, absent an "equivalent picture" of the trial proceedings, the lack of a full transcript due to the death or disability of the court reporter made meaningful appellate review of the convictions impossible and entitled the defendants to new trials.

Where the appellate court, finding that a convicted murderer had not waived his right to a direct appeal after trial, ruled that he was entitled to an appeal 12 years after the judgment of conviction was entered, and the state was unable to provide a transcript of the trial as required by statute due to the death of the court reporter and the inability of other reporters to transcribe the notes of the deceased reporter, it was held in Commonwealth v Goldsmith (1973) 452 Pa 22, 304 A2d 478, that the convict was entitled to a new trial if an "equivalent picture" of the trial proceedings could not be provided. Finding that meaningful appellate review is impossible absent a full transcript or an equivalent picture of the trial proceedings, the court, citing Commonwealth v Anderson (1971) 441 Pa 483, 272 A2d 877 and Commonwealth v De Simone (1972) 447 Pa 380, 290 A2d 93, ruled that if meaningful appellate review was impossible, and the appellant was not at fault, fairness compelled the grant of a new trial.

Noting that the responsibility for producing a transcript for appellate review lies with the state, not with the defense counsel, the court in Commonwealth v Dixon (1978) 253 Pa Super 383, 385 A2d 391, held that the state's failure to provide the appellate counsel, who had not represented defendant at his trial for theft, with a transcript of the trial owing to the death of the court reporter, and the unavailability of an "equivalent picture" of what transpired below, entitled the defendant to a new trial since it precluded him from meaningfully and effectively exercising his appellate rights.

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3. Failure or Inability to Complete Partially Transcribed Notes

§ 19. Impossibility of reconstructing record, generally

The death of the court reporter and the inability of other reporters to reconstruct the record by reading the deceased reporter's partially transcribed notes were found by the court in the following criminal case to be grounds for the granting of a new trial.

It was held in O'Neal v State (1969, Okla Crim) 450 P2d 913, that a prisoner challenging a conviction for grand larceny who filed, pursuant to the order of the District Court, a transcript of the record and a petition in error, the case made to be filed as a supplement to the record when, and apparently if, the reporter recovered from a serious and lengthy illness, was entitled to a new trial since the subsequent death of the court reporter and the inability of others to read his notes prevented him from completing the case made for appeal.

§ 20. Failure to request complete transcript

In the following case, the court found that a criminal defendant's failure to request a complete transcript, although he had the opportunity to do so while the court reporter was still alive precluded the granting of a new trial upon the death of the court reporter without transcribing the entire record.

Where prior to a court stenographer's death the defense counsel had had numerous conferences with the stenographer as to what testimony he desired transcribed for the purposes of preparing and presenting the formal bills reserved during the trial and in each instance the requests for transcription of testimony were readily complied with, the court in State v Mastricovo (1952) 221 La 312, 59 So 2d 403, held that the trial court had properly refused defendant's motion, made after the death of the court reporter, for a transcription of the entire record, since the defense counsel had never requested transcription of the entire record while the stenographer was alive and to have allowed the motion would have required the granting of a new trial because the reporter's notes were undecipherable by others. The court ruled that while defendant's counsel, in connection with each respective bill, made the entire testimony of the case a part thereof, the burden was on him to annex it and incorporate it in the formal bill so that it could be considered by the court.

§ 21. Inability to reconstruct jury instructions

The unavailability of the jury instructions in a criminal case because of the court reporter's death before transcribing them and the inability of the trial court to reconstruct them due to the death of the defense attorney were found by the court in the following case to be grounds for a new trial.

Where jury instructions challenged on the appeal of a conviction for robbery were unavailable due to the death of the court reporter and the loss of his notes, the court in Yancey v State (1972, Fla App D4) 267 So 2d 836, finding that the trial judge had certified that an accurate reconstructed record could not be furnished because of the death of the defense attorney, held that the robbery conviction should be reversed and a new trial granted. Ruling that the robber was entitled to a full transcript, the court found that he had proceeded in a timely fashion and had not contributed to the state's inability to furnish a complete transcript. Although the appellate court initially instructed counsel and the trial court to make a determined effort to reconstruct the jury charge actually given, it modified its original order and granted the robber's motion for a new trial upon receiving the trial judge's certification. It was held that the evidence further suggested that should the reporter's notes be found, they would be indecipherable due to the reporter's unique style.

B. Attempt to Settle Record or Agree to Facts

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§ 22. Inability to agree to facts, generally

The inability of the defendant and the state to agree to a statement of facts when no transcript was available due to the death of the court reporter and the inability of others to read his notes was found by the courts in the following criminal cases to warrant a new trial.

Noting that the taking of an appeal from a judgment of conviction is a matter of right, the court in People ex rel. of Berry v De Wilkowska (1936) 246 App Div 285, 285 NYS 430, held that where the court reporter who took the testimony died before transcribing his notes and the parties were unable to agree on a statement of facts, a conviction for fraud on hotel keepers would be reversed and a new trial ordered.

Where the state's attorney and the court were unable to agree or approve a statement of facts submitted by the murderer's counsel, and the trial judge could not, with the death penalty involved, in good conscience, prepare a statement of the facts from recollection nor reconcile the differences that existed between the state and the defendant, a convicted murderer who had used due diligence in attempting to obtain such a statement was found in Little v State (1936) 131 Tex Crim 164, 97 SW2d 479, to be entitled to a new trial upon the death of the court reporter after transcribing the objections and exceptions taken during the trial but before transcribing the statement of facts.

§ 23. Prepared by substitute reporter

In the following case the court ruled that a criminal defendant was entitled to a new trial where the court reporter died before transcribing his notes and the parties were unable to agree to a statement of facts prepared by another court reporter.

A convicted murderer was found in Little v State (1936) 131 Tex Crim 164, 97 SW2d 479, to be entitled to a new trial where the court reporter at his trial died after transcribing the objections and exceptions taken during the trial but before transcribing the statement of facts, and the state's attorney and the murderer's attorney were unable to agree on the accuracy of a statement of facts prepared by another court reporter from the deceased reporter's notes. Since the murderer had been unable to obtain a statement of facts after using due diligence, the appellate court ruled that it was constrained to order a reversal of the judgment and remand the cause.

§ 24. Prepared and certified by judge

The court in the following case found that a criminal defendant was not entitled to a new trial upon the death of the court reporter before transcribing his notes where the trial judge prepared and certified a statement of facts.

It was held in Thomas v State (1942) 144 Tex Crim 533, 164 SW2d 852, that a defendant convicted of uttering a forged deed was not entitled to reversal and a new trial on the ground that he had been deprived of a statement of facts because of the death of the court reporter who officiated at the trial, where the record on appeal was accompanied by a statement of facts, certified as being a "complete, fair and accurate statement of the evidence in this case," made by the trial judge after the defendant's counsel and the district attorney had failed to agree on a statement.

§ 25. Inability to remember facts

In a situation where the court reporter died before transcribing his notes, the courts in the following cases held that criminal defendants were entitled to new trials because the parties were unable to prepare a statement of facts from recollection.

Observing that the trial counsel for two defendants convicted of breaking and entering with intent to commit a felony had resigned under highly acrimonious circumstances, the court in Simmons v State (1967, Fla App D1) 200 So 2d 619, ordered a

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new trial where the court reporter died before transcribing her notes, ruling that even if co-operation by defendants' trial counsel could be assured, the great length of time which had elapsed since the date of trial would have such a dulling effect upon the ability of the trial judge and trial counsel to recall with reasonable certainty all the pertinent facts which were developed during the trial as to render a reconstruction of the trial in narrative form unsatisfactory as a basis for fairly judging the merits of the appeal.

Having been deprived of a statement of facts due to the illness of the court reporter who took notes at the trial, and having shown all the diligence required by law, a convicted rapist was held in McNabb v State (1939) 137 Tex Crim 463, 132 SW2d 273, to be entitled to a new trial since neither the trial court nor the state's counsel were able to prepare a statement of facts from recollection. The appellate court noted that the trial judge stated that he would have granted a new trial but by the time the full facts were disclosed to him, he was without jurisdiction to do so.

Where, by agreement, the exceptions and objections to the trial court's charge had been dictated to the court reporter and were unavailable due to the reporter's death and the inability of other reporters, who used the same shorthand system as the deceased reporter, to read his notes, the court in Brannan v State (1939) 137 Tex Crim 611, 132 SW2d 594, held that since the defendant's counsel and the trial judge could not recall sufficient facts to prepare a statement of the case, the conviction for burglary would be reversed and the cause remanded.

Where a party was deprived of the statement of facts necessary to perfect an appeal because of the death of the court reporter and the inability of others to read his notes, and defendant's counsel, the district attorney, and the trial judge were unable to make up a statement of facts from memory, it was held in Seliger v State (1940) 139 Tex Crim 26, 138 SW2d 817, that the defendant's judgment of conviction would be reversed and the cause remanded.

§ 26. Different counsel

The court in the following criminal case granted a new trial where the defense attorney, who was not present at trial, was unable to attempt to agree to a statement of facts in lieu of a reporter's transcript, which was unavailable because of the death of the reporter before transcribing his notes.

It was held in Simmons v State (1967, Fla App D1) 200 So 2d 619, that defendants' convictions for breaking and entering with intent to commit a felony would be reversed and a new trial ordered where the court reporter died before transcribing her notes, and her successor's attempt to read her shorthand notes proved futile, since defendants' appointed attorney, who was not their attorney at trial, was unable to stipulate with counsel for the state upon a condensed statement in narrative form of the testimony and evidence adduced during the trial.

§ 27. Counsel able to prepare stipulated record

The courts in the following criminal cases refused to grant new trials where the parties were able to prepare a stipulated record to replace the transcript which was unavailable due to the reporter's death.

Where a city councilman convicted of the solicitation of a bribe and malfeasance in office stipulated as to part of the record which was unavailable due to illness of the court reporter, the court in Wallace v State (1965, Sup) 58 Del 521, 211 A2d 845, held that the councilman had no standing to complain that the appeal was not heard on the complete transcript in violation of the state Supreme Court rules. Finding that this appeal was submitted on the basis of the stipulation entered into presumably with the agreement of the councilman as well as his counsel, the court noted that no transcript of evidence was ordered and the court reporter was now deceased, making a full transcript unavailable. Since the case was decided upon the basis of the record and supplemented by the stipulation, the court denied the councilman's petition for reargument.

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See Bennett v State (1967, Fla App D1) 196 So 2d 449, where the court, denying the state's motion to dismiss an appeal on the grounds that no brief had been filed,[27] remanded the case so that an attempt could be made at preparing an agreed statement to replace the transcript which was unavailable because the reporter died without transcribing his notes. In a decision applying only the specific set of facts contained in the case at bar, the court citing the action of the United States Supreme Court in Chessman v Teets (1957) 354 US 156, 1 L Ed 2d 1253, 77 S Ct 1127 (§ 4), ordered that an attorney be appointed to represent the defendant in the preparation and settlement of a transcript of the testimony, and that such record be submitted to the defendant for his approval, suggested changes and/or additions. Futhermore, the court ruled that if such a record could not be constructed with reasonable accuracy, then the judgment and sentence were to be set aside and a new trial granted. The court went on to note that if the defendant had an attorney at the trial, a stipulation of counsel as to the facts should be entered into and approved by the trial court thereby giving such approved transcript the sanctity of the original as if prepared by the reporter.

An indigent convicted of breaking and entering, larceny, and receiving, who was unable to obtain a transcript of his trial because of the court reporter's death before transcribing his notes and the inability of others to read such notes, was held in State v Allen (1969) 4 NC App 612, 167 SE2d 505, not to be entitled to a new trial where his counsel was able to prepare a stipulated record and statement of the case on appeal. Noting that the inability to obtain a transcript was analogous to a situation where no stenographer was present at the trial, the court found that counsel's preparation of a statement of the evidence and proceedings at the trial from the best available sources, including his recollection, was sufficient to meet the requirements of the applicable court rule. Although the indigent alleged that the unavailability of a reporter's transcript deprived him of an opportunity to obtain adequate and effective appellate review, the court found that he did not contend that any error actually occurred at his trial.

Where the court reporter in a murder trial died before transcribing his notes and no one was found who could read the notes, thereby forcing the parties to make up the statement of facts from such trial notes as counsel had preserved and from the recollection of the evidence by the trial judge and counsel, the appellate court in State v Evans (1927) 145 Wash 4, 258 P 845, ruled that a convicted murderer was not entitled to a new trial. Observing that the method used in this instance was less convenient than making a statement of facts from a transcript of the court reporter's notes, the court found that the use of the record which contained a substantial outline of the testimony, and had been certified by the trial court as containing all of the material facts, matters, and the proceedings occurring at the trial did not deny the murderer any of his substantial rights.

§ 28. Statement refused by court

The court in the following case in which a transcript was unavailable due to the death of the court reporter before transcribing his notes held that a murderer was not entitled to a new trial where the trial court refused to certify a statement of facts prepared by the defendant because it appeared unreliable.

It was held in People v McKee (1962) 25 Ill 2d 553, 185 NE2d 682, cert den 374 US 810, 10 L Ed 2d 1033, 83 S Ct 1698, reh den 375 US 872, 11 L Ed 2d 102, 84 S Ct 31, that, where no transcript was available for use in an indirect appeal because the court reporter died prior to transcribing his notes, the trial court properly refused to certify a convicted murderer's narrative transcript because it appeared unreliable. Observing that the judge who presided at the murder prosecution was deceased, and the attorneys for both sides who participated in the trial had no recollection of the exact nature of the testimony, the appellate court noted that before the trial court certified any transcript it must be satisfied that it was an accurate transcript or summary of the evidence at the trial. It was also held that the trial judge properly refused to correct the narrative since there was no basis upon which such a correction could have been made.

III. Civil Cases

A. Transcript of Trial

1. Preparation by Another Reporter

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§ 29. Adequate to obtain review

The court in the following civil action found the transcript prepared by a substitute reporter from the deceased reporter's notes to be adequate for the purpose of obtaining appellate review and therefore denied a motion for a new trial.

Affirming the trial court's decision not to grant a new civil trial where the official court reporter died 2 weeks after the trial ended but before transcribing his notes, the court in Thell v Ramus (1955) 245 Minn 409, 72 NW2d 618, held that the trial court had not abused its discretion in finding that the record prepared by another reporter was a fair and reasonable transcript of the deceased reporter's shorthand notes taken at the trial and would serve the purpose of obtaining review on appeal in accordance with the plaintiff's constitutional rights. Noting that the ability of a reporter to read the notes of another reporter is a question of fact to be decided in each instance, the court found that it was immaterial whether the notes were transcribed by an official reporter as distinguished from one who was not employed by the state courts since it was up to the trial judge to settle the case if he determined that the transcript presented was a fair and reasonable transcript of the deceased reporter's shorthand notes.

§ 30. Failure to show inaccuracies

The courts in the following civil cases denied motions for new trials upon finding the record completed by another reporter after the death of the trial reporter without completing the transcription of his notes to be correct since the moving party had failed to allege any inaccuracies.

It was held in White Pine Lumber Co. v Manufacturers' Lumber Co. (1916) 191 Mich 390, 158 NW 124, an action involving the alleged recission of a lumber contract, that since the buyer's counsel did not point out or suggest any mistake in the transcript prepared by a substitute reporter from the deceased reporter's notes with the assistance of the seller's counsel, its use was not erroneous and a new trial would not be granted.

Observing that the testimony of the official stenographer who transcribed the deceased reporter's notes and that of other witnesses, including those who were called by the opposing party, did not reveal that there was any material mistake or omission in the transcript of the evidence and proceedings, the appellate court in Waugaman v Henry (1920) 75 Pa Super 94, denied a motion for a new civil trial, finding that the judge, who succeeded the judge who had presided at the trial, was correct in proving the transcript.

It was held in Emerick v Carson (1984) 325 Pa Super 308, 472 A2d 1133, an action to recover for personal injuries sustained in an automobile accident, that an injured party who failed to point out any aspect of the transcript which may have been inaccurate was not entitled to a new trial upon the death of a court reporter without transcribing the entire record, where, pursuant to state law, the chief court stenographer, upon order of the trial court, was able to complete the transcription. The appellate court also noted that the trial judge, who had taken copious note at the trial and compared them with the trial transcript, was satisfied that an accurate record had been prepared.

§ 31. Certification

The courts in the following civil cases refused to grant a new trial where the transcript prepared by a substitute reporter from the deceased reporter's notes was certified to be correct.

Where, in an action involving the alleged rescission of a lumber contract, the original stenographer died before transcribing his notes, a second stenographer was able to read and transcribe the notes with assistance of the seller's counsel and stated that he believed the transcript made by him to be correct, and the trial judge certified that the transcript made from the notes of the deceased reporter was true, complete, and correct, it was held in White Pine Lumber Co. v Manufacturers' Lumber Co. (1916)

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191 Mich 390, 158 NW 124, that a new trial would not be ordered. The accuracy of a bill of exceptions is to be determined by the trial judge, and his certificate is ordinarily conclusive, the court declared.

Where a substitute reporter was able to prepare a case made from the notes of the deceased court reporter which the defendant's attorneys stipulated to and the trial judge certified as being true and correct, it was held in Lee v Pierce (1925) 112 Okla 212, 239 P 989, that the trial court did not err in overruling the petition for a new civil trial. The court ruled that a party would not be permitted to solemnly enter into a stipulation to the effect that a case made contained a true and correct transcript of the evidence, and then be heard to say on appeal that the reporter did not correctly transcribe the evidence in the case.

It was held in Waugaman v Henry (1920) 75 Pa Super 94, that a new civil trial would not be granted where another stenographer transcribed the notes of a deceased stenographer and certified that the transcript was a correct translation of the notes of the deceased stenographer.

The appellate court in Emerick v Carson (1984) 325 Pa Super 308, 472 A2d 1133, refused to grant a new trial to the injured party in a personal injury action upon the death of a court reporter without transcribing the entire record, where, pursuant to state law, the chief court stenographer, upon order of the trial court, was able to complete the transcription and certify that the trial transcript was accurate. The appellate court also noted that the trial judge, who had taken copious note at the trial and compared them with the trial transcript, was satisfied that an accurate record had been prepared.

32. Failure or Inability to Transcribe Notes

§ 32. Constitutional right

In the following civil case, the court found that the denial of a new trial upon the death of the court reporter which prevented the moving party from preparing a record for appeal was not a denial of any constitutional right.

It was held in Dumbarton Realty Co. v Erickson (1909) 143 Iowa 677, 120 NW 1025, that while the state constitution afforded every party to an equitable action the right to appeal in the state Supreme Court, the refusal of the court to grant a new trial upon the death of the court reporter so that the appealing party could perfect a record for appeal was not a denial of this constitutional right. Noting that the right to appeal was a right to prosecute the same according to the reasonable rules and regulations imposed by legislative authority, the court found that a party who failed to observe these regulations, or to present a record in accordance therewith, and was therefore denied a hearing upon the merits of his appeal, was not deprived of any constitutional right.

§ 33. Failure to show notes cannot be transcribed

The court in the following civil case refused to grant a new trial where the moving party had not shown that the deceased reporter's notes could not be transcribed.

Where a supplier of labor and materials in an action to recover on a surety bond failed to show that the notes of one of the two reporters who had recorded the trial, but had died before transcribing the notes, could not be transcribed by another shorthand reporter, it was held in Watsabaugh & Co. v Seabord Surety Co. (1939, CA9 Mont) 106 F2d 355, that the supplier had not satisfied the requirements of a particular court rule, and was not entitled to a new trial. The court noted that both reporters' shorthand notes were in a standard system of shorthand which could be transcribed by other shorthand reporters, and that other notes of both stenographers had been so transcribed since their deaths.

§ 34. Diligent effort made to obtain transcript

The courts in the following civil cases found the diligent efforts made by the moving party to obtain a transcript, which was unavailable due to the death or disability of the court reporter, warranted the granting of a new trial.

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In an action for the wrongful taking of partnership property and for an accounting, it was held to be an abuse of discretion in Fickett v Rauch (1947) 31 Cal 2d 110, 187 P2d 402, to deny the defendant a new trial for his inability to obtain a transcript because of the reporter's death, which occurred after the trial judge had announced his opinion that a partnership had been proved and before there had been a trial of the accounting issues, since the defendant's counsel had acted with diligence to obtain a transcript. The court found that the delay in the trial of the accounting issues was due to the fact that the defendant was in military service at the time and that the defendant's attorney had made a request for a transcript of the testimony immediately after learning of the court reporter's death and was informed that it would be impossible to obtain such a transcript because other transcribers could not read the deceased reporter's notes.

Where a reporter in a divorce proceeding died before transcribing his notes, it was held in Weisbecker v Weisbecker (1945) 71 Cal App 2d 41, 161 P2d 990, that the lower court abused its discretion in refusing to grant the wife's motion for a new trial since the wife's attorney acted diligently and the opposing attorney consented to the delay in obtaining the trial transcript. Under these facts, the court found that the sudden death of the court reporter satisfied the conditions described by statute and that under the circumstances the denial of a new trial seemed unreasonable.

Ruling in an action to recover damages to crops caused by water escaping from an irrigation ditch, the court in Shafer v King (1927) 82 Colo 258, 259 P 1042, found that the trial court did not err in granting a new trial where because the trial court reporter became incapacitated and was unable to write up or dictate his notes, the defendants, without fault of their own, were unable to obtain a transcript of the proceedings to be reviewed by an appellate court. Holding that the grant of a new trial was an act of justice, the appellate court found that it should not be undone.

Finding that a city had acted diligently and was not guilty of negligence in failing to have a bill of exceptions perfected, the court in Green v Kansas City (1934, Mo App) 77 SW2d 652, ruled that it was entitled to a new civil trial where the court reporter died before transcribing his notes. Noting that the trial judge died before the reporter, the court found that the trial counsel did not have sufficient notes from which to prepare a bill of exceptions, therefore a new trial was required.

Where no adequate remedy at law was shown to exist, a new trial was properly granted in Coan v Plaza Equity Elevator Co. (1931) 60 ND 51, 232 NW 298, where the court reporter who took notes of the trial died and other reporters were unable to read his notes, thereby depriving the plaintiff, who had acted diligently in attempting to obtain a transcript, of his right to appeal.

Affirming the grant of a new trial where the illness and failing eyesight of the court reporter both at the time of and subsequent to trial made it unlikely that he would ever be able to transcribe the testimony at the trial and other reporters could not read his notes, the court in Zimmerman v Kitzan (1950) 77 ND 477, 43 NW2d 822, found that the trial judge might reasonably have reached the conclusion that, since the plaintiff had exercised due diligence and used every reasonable effort to obtain a transcript of the civil proceedings, the ends of justice would best be served if the case were retried. Noting that the trial court was sitting in an equity action and that the trial judge was familiar with all the incidents of the trial, the appellate court characterized the grant of the motion for a new trial as an exercise of the inherent authority of an equity court.

Where defendant city in a wrongful death action made an application for a new trial on the grounds of the impossibility of obtaining a transcript because of the death of the court reporter and the inability of others to read his notes, showing that it had used reasonable diligence and good faith in attempting to appeal and that without such notes being transcribed it was unable to make a case made, the court in Duncan v Abrams (1935) 171 Okla 619, 43 P2d 720, held that a new trial should be granted.[29]

Where the inability to obtain a record due to the court reporter's disability would leave the appellate court in no position to determine whether there had been any error in the trial court's refusal to probate a will, it was held in Caffee v McBee (1940, Tex Civ App) 142 SW2d 581, writ ref, that a new trial would be granted since appellants had done all they properly could have to procure a statement of facts in question and answer form.

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Where, after exercising due diligence, the defendant in a personal injury action was unable to procure a transcript due to the continuing illness of the court reporter, and where there was no reasonable probability that the court reporter would ever be physically or mentally able to transcribe his notes or read the same to another court reporter, it was held in Gibbs v Crittenden (1953, Tex Civ App) 262 SW2d 804, that a new trial would be granted so as to preserve the defendant's right to review on appeal. The court ruled that, under the existing circumstances, no useful purpose would be served by further extending the time in which a statement of facts might be filed.

§ 35[a] Delay or laches—Requesting transcript

The courts in the following cases refused to grant motions for new civil trials where the parties failed to request transcripts in the period between the end of the trial and the time the reporter died or became disabled.

Although the wife in a divorce action filed her appeal within the time provided for by statute, the court in McKinley v McKinley (1904) 123 Iowa 574, 99 NW 162, ruling that she was not diligent in pursuing her appeal since she waited until nearly the end of the statutory period to file her appeal and request a transcript, refused to overturn the trial court's denial of a new trial where the court reporter's failing eyesight prevented him from completing the transcript. Finding that since the fact that the transcript was essential to her appeal was as evident at the time the judgment was entered as it was when the appeal was filed, and no sufficient reason was shown for the delay in procuring the transcript, the court concluded that the ruling of the trial court would not be disturbed because although the wife and her counsel were undoubtedly acting in the utmost good faith, they seemed to have been willing to take their chances on the late appeal.

Observing that a new trial based on the unavailability of a transcript upon the death of the stenographer should be granted only if the notes are essential, and proper diligence to procure the transcript has been exercised, the court in Battle v Manko (1954) 175 Pa Super 221, 103 A2d 281, affirmed the trial court's denial of a motion for a new trial where, prior to the death of the reporter, the owners of a house in an action to recover building costs had alleged only that the verdict was against the evidence, and had failed to exercise due diligence in requesting a transcript in the 6 months between the entry of the judgment and the death of the reporter. Finding that if the notes were essential, the appellants had ample time to have them transcribed before the death of the stenographer, the appellate court ruled that the absence of the notes of testimony was as much the result of the appellants' lack of diligence as of the reporter's death.

§ 35[b] Delay or laches—Failure to compel transcription

Finding that the moving parties had failed to take any action to compel the timely preparation of transcripts by the court reporters while they were able to do so, the courts in the following civil cases refused to grant new trials because the death or disability of the court reporters prevented them from transcribing their notes.

Stating that the press of other business was not a valid excuse for a reporter's failure to prepare a transcript, and noting that there was no evidence of any disability that would have prevented the reporter from preparing the transcript during the 7 months between the time the transcript was requested and the reporter suffered a heart attack, the appellate court in Caminetti v Edward Brown & Sons (1943) 23 Cal 2d 511, 144 P2d 570, affirmed the trial court's holding that, because the appellant did not, at any time, call the delay in the preparation of the transcript to the court's attention, nor did he take any action to persuade or compel the reporter to prepare the transcript, a new civil trial would not be granted.

The court in Pierpoint v Akin (1925) 76 Colo 478, 232 P 682, upheld the trial court's denial of a new civil trial because of the lack of a transcript due to the court reporter's illness, noting that it did not appear that the reporter was too ill to read and dictate his notes, or that any attempt was made to get him to do so.

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However, see Daunis v Maryland Casualty Co. (1959, La App 2d Cir) 108 So 2d 809, a personal injury action in which the court found that the passing of 2 months between the date of the taking of the victim's appeal and the death of the court reporter was not a valid reason for denying a motion for a new trial.

§ 35[c] Delay or laches—Attempting to have notes transcribed

Denying a motion for a new trial upon the death of the court reporter before transcribing his notes, the court in the following case found that the moving party's delay in attempting to have the deceased reporter's notes transcribed violated the requirement that all reasonable means and methods be exhausted in attempting to prepare the case made.

Where there was no showing that a defendant's attorney made any effort toward having a reporter's shorthand notes transcribed until a few days before the hearing on a petition for a new trial, the court in James v Atlas Fishing Tools, Inc. (1962, Okla) 377 P2d 214, held that the trial court was justified in denying the motion for a new civil trial upon finding that all reasonable means and methods had not been exhausted in attempting to prepare the case made. The court ruled that the law contemplated that the complaining party must exhaust all reasonable means and methods to prepare, serve, settle, and sign the case made before he becomes entitled to a new trial.

§ 35[d] Delay or laches—Notice to court of need for transcript

The court in the following civil case granted a motion for a new trial to a party which had promptly notified the court of its need for a transcript which was unavailable due to the death of the court reporter before he had transcribed his notes.

Where an action to quiet title was reopened and the court reporter who recorded the first part of the trial died and other reporters were unable to read his notes, the court in Aylmer v Aylmer (1956, 4th Dist) 139 Cal App 2d 696, 294 P2d 98, finding that the evidence taken at the first hearing was necessary to a proper determination of the plaintiffs' claims on appeal and that there was no unnecessary delay in bringing to the court's attention the necessity of having a reporter's transcript prepared in case of an appeal, held that it was an abuse of discretion to deny a new trial.

§ 35[e] Delay or laches—Requesting relief

The courts in the following cases found that the actions of a party who knew shortly after trial that the transcript was unavailable because of the reporter's disability but did not request relief for many months warranted the denial of a motion for a new trial.

The trial court's denial of a motion for a new civil trial was affirmed in Caminetti v Edward Brown & Sons (1943) 23 Cal 2d 511, 144 P2d 570, the court finding that the appellant waited more than 8 months after learning of the reporter's disability before filing his notice of intention to move for a new trial because of the unavailability of a transcript.

Where the court reporter in an action involving the right to use certain channels and ditches and the manner of handling certain excess flows of water had been sent to jail for being drunk and disorderly approximately 1 month following the conclusion of the trial, the court in Duarte v Rivers (1949) 90 Cal App 2d 152, 202 P2d 612, held that it was not an abuse of discretion for the trial court to refuse to grant a new trial, noting that where the disability of the reporter was known to the appellants shortly after the trial ended and long before the appeal was taken, where the situation was unchanged and apparently hopeless at the time the appeal was taken and formal requests for a transcript made, and where another delay of 8 months in seeking relief then ensued, it could not be held as a matter of law that there was the necessary diligence or prompt action on the part of the appellants. The appellate court ruled that while it seemed that a new trial should have been granted had it been promptly applied for, the trial court's conclusion under the existing facts would not be disturbed on appeal.

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§ 36. Reliance on court reporter for transcript

The court in the following civil case granted a new trial upon finding that the moving party was not negligent in relying on the court reporter who died before transcribing his notes for a transcript so as to incorporate it into the case made on appeal.

Finding that it was neither slight, ordinary, nor gross negligence on the part of the complaining party or his counsel to rely upon the court reporter furnishing him or his counsel with a transcript of his stenographic notes of the evidence and proceedings within the time allowed by law or by the court to make and serve the case made and that a showing had not been made that the case made could be prepared in any other manner than by the use of a reporter's transcript, it was held in Harris v First Nat. Bank (1929) 140 Okla 269, 282 P 1097, that the trial court committed error in denying a new trial where the court reporter who took notes at the trial suffered an eye impairment which prevented him from transcribing those notes.

§ 37. Presumption of validity of trial court verdict, generally

In the following civil cases in which the court reporter died before transcribing his notes, the courts held that there is a presumption of validity in the trial court's verdict, and that the verdict will only be overturned upon a specific showing of error presented in a record sufficiently complete to allow effective appellate review.

Observing that there may be an occasional hardship in denying a new trial where the court reporter who recorded a portion of the civil proceedings died before transcribing his notes, the court in Moore v Specialty Oil Tool Co. (1933) 128 Cal App 662, 18 P2d 82, affirmed the trial court's denial of a new trial, finding that every presumption was in favor of the fairness, impartiality, and regularity of the proceedings of the trial court which led to the judgment and that the party in whose favor the judgment was rendered should be entitled to the benefit of those presumptions.[30]

Refusing to grant a new civil trial upon the death of the court stenographer before transcribing his notes, the court in Morin v Claflin[31] (1905) 100 Me 271, 61 A 782, held that the presumption was that a verdict was right until it was shown to be wrong and that a verdict could not be set aside without evidence that that verdict was wrong.

Since the defeated party was unable to clothe the court with the jurisdiction to review the case on the weight of the evidence, and the presumption being that the judgment rendered in the trial court was correct, it was held in Searles v Cowdrick (1912) 21 Ohio CC NS 378, 35 Ohio CC 224, affd without op 91 Ohio St 371, 110 NE 1067, that a new civil trial would not be granted where, after the death of the official stenographer, no other person was able to transcribe her notes, and the defeated party, having relied on the stenographer, was unable to prepare a bill of exceptions which the trial court would certify as containing all the evidence.

Holding that it was a manifest injustice to the victor at trial to have his judgment vacated and a new trial ordered because, long after the judgment was rendered, a condition arose by which the dissatisfied party was unable to perfect an appeal from a judgment which must be presumed to be right and just, the appellate court in Butts v Anderson (1907) 19 Okla 367, 91 P 906, ruled that the trial court's grant of a new civil trial upon the death of the court reporter prior to transcribing his notes was in error.

§ 38. Failure to show substantial justice not done

In the following civil case the court refused to grant a new trial upon the death of the court reporter without transcribing his notes since no showing was made that substantial justice had not been done at trial.

Where a statute provided for a new trial for enumerated reasons and "for other reasonable cause," it was held in Dudley v Hull (1927) 105 Conn 710, 136 A 575, that although the phrase "for other reasonable cause" was not restricted to causes of the same general character as those particularly enumerated and was intended as an express confirmation of the inherent power of a court of equity to grant a new trial in any case of fraud, accident, or mistake where the petitioner had been deprived of some

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inherent right or privilege, the plaintiff in the instant case was not entitled to a new civil trial due to the death of the official stenographer which prevented him from securing a transcript of the evidence to accompany his exceptions to the trial court's refusal to correct a finding, where neither the allegations of his motions nor the facts showed that substantial justice was not, or may not have been, done.

§ 39. Failure to allege errors at trial

The court in the following case held that the moving party's failure to allege errors at the trial prevented the granting of a new civil trial upon the death of the court reporter before transcribing his notes.

Noting that every presumption is in favor of the fairness and regularity of the proceedings in the trial court which led to the judgment, the appellate court in Kroeker v Jack (1942) 51 Cal App 2d 272, 124 P2d 619, held that the trial court did not abuse its discretion in refusing to grant a new civil trial upon the death of the court reporter where no other court reporters could read or transcribe his notes, since no errors on the part of the trial court were asserted to have occurred, and no statement was made in the affidavits, or otherwise, that there was any likelihood that a different conclusion would be reached upon a retrial.

§ 40. Lack of statutory authority to order new trial

The courts in the following civil cases held that they were without authority to grant a new trial upon the death or disability of the court reporter without transcribing his notes.

It was held in Territory v Montgomery (1950) 38 Hawaii 561, that the father in a paternity suit, who sought to have the judgment and the verdict in a trial court annulled and vacated and the case remanded for a new trial based upon the inability to obtain a record of the testimony caused by the illness and subsequent death of the official court reporter, could not prevail because the appellate court was without jurisdiction to grant his motion. Noting that the granting of a new trial was not a matter of right but was founded upon and limited by statute, the court held that the inability to perfect a record on appeal was not encompassed in the statutory grounds for the granting of a new trial. In addition, since the Supreme Court's appellate jurisdiction was limited by statute to questions "properly brought before it on. . . error. . . duly perfected. . . according to law," and the transcript of the witnesses was, by statute, a necessary and indispensable portion of the record, the court found that it had neither jurisdiction nor power to determine the questions presented by the father's specified errors.

The court in Phillips v Elliott (1959) 129 Ind App 498, 158 NE2d 295, denying an informative verified application, held that it did not have the authority to grant a new civil trial where the official court reporter had died and her successor was unable to read her notes. Although the appellate court ruled it did not have the authority to grant a new trial, it found that, under the facts alleged, the trial court had ample authority to grant a new trial in order to afford the petitioner the constitutional rights guaranteed him by the state constitution. The court therefore suggested that if the parties could not agree upon a bill of exceptions, petitioner should move for a new trial in the trial court.

Reversing the trial court's grant of a new trial in a riparian rights case where one of the court reporters had died before transcribing his notes and other reporters were unable to read his notes, the court in Dumbarton Realty Co. v Erickson (1909) 143 Iowa 677, 120 NW 1025, held that the right to a vacation of judgment and the grant of a new trial was not expressly provided for by statute in this situation, nor did the facts qualify as an "unavoidable casualty or misfortune preventing the party from prosecuting or defending." The court found that a careful reading of this clause made it very clear that the language had exclusive reference to matters occurring before the entry of the judgment sought to be vacated, and since the illness and death of the court reporter occurred more than 1 year after the cause was tried and submitted and 3 months after the entry of the decree of judgment, it did not prevent the parties from prosecuting or defending the action. It was also held that since the reporter's notes still existed, although no one was able to read them, the record was not lost and the court need not decide whether its general equity powers gave it the right to order a new trial. Holding that statute provides for the substitution of the missing record, the court noted that testimony could be retaken under the control of the judge who presided at the trial and who would be able to keep the re-

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examination of the witnesses within the general lines observed in the original hearing, thereby effecting a practical perfection of the record.

And in Morin v Claflin[32] (1905) 100 Me 271, 61 A 782, it was held that there was no authority to remand a case for a new civil trial where the official court stenographer died before having transcribed his shorthand notes, which were incapable of being transcribed or translated into longhand by others, because the appellate court, before which the motion for a new trial was made, was neither a constitutional court nor a court of original or common-law jurisdiction, but had only that jurisdiction conferred upon it by statute, which made no reference to the situation in this case. The court noted that the conditions required by statute as precedent to taking and perfecting an appeal could not be modified or extended by any judge or court without express statutory authority.

Rejecting the suggestion that it determine a motion for a new civil trial occasioned by the death of a court reporter without transcribing his notes upon principles analogous to equitable doctrines rather than the strict rules of law, the court in Longmire v Diagraph-Bradley Stencil Machine Corp. (1943) 237 Mo App 553, 173 SW2d 641, denied the motion, ruling that equitable interposition could not be invoked in aid of a motion to vacate a judgment; a petition in equity being necessary for that purpose. Observing that both the state Supreme Court and Courts of Appeals have only such jurisdiction as is specially conferred upon them by the statutes and the constitution, the court held that where the statute requires it to review the record as is brought up from the trial court, it cannot adopt another and different course and relieve the appellant of the statutory requirements.

Where, after the death of the official stenographer, no other person was able to transcribe her notes, and the defeated party was unable to prepare a bill of exceptions which the trial court would certify as containing all the evidence, it was held in Searles v Cowdrick (1912) 21 Ohio CC NS 378, 35 Ohio CC 224, affd without op 91 Ohio St 371, 110 NE 1067, that although stenographers in the past had furnished transcripts of the testimony for use in preparing bills of exceptions, the primary duty of reducing the exceptions to writing and filing them within the time limit was imposed upon the party excepting, not upon the stenographer, and since the defeated party was unable to clothe the court with the jurisdiction to review the case on the weight of the evidence, and the presumption being that the judgment rendered in the trial court was correct, no new civil trial would be granted.

Noting that irregularities as to the clerk's recording of the judgment did exist but were easily correctable by order of the court, the appellate court in Butts v Anderson (1907) 19 Okla 367, 91 P 906, ruled that no statutory ground for a new trial occasioned by the inability to obtain the transcript due to the reporter's death existed and therefore the trial court's grant of a new trial was in error.

§ 41. Statute mandating new trial

The courts in the following civil cases held that they were required by statute to grant a new trial where the court reporter died without transcribing his or her notes.

A trustee in a bondholder's action, who was unable to appeal from the dismissal of his counterclaim due to the death of the stenographer before transcribing her notes, was held entitled to a new trial in Brooks v National Shawmut Bank (1949) 323 Mass 677, 84 NE2d 318, the court saying that the statute allowing a defeated party to bring a case to the appellate court on all the evidence, wherein the appeal would be decided solely upon the issue whether the facts supported the decree, created a substantial right, and to deprive the defendant of it because of an event for which he was in no way responsible would be manifestly unjust.[33] Although the court found that hardship would be imposed upon the plaintiffs in requiring them to undergo the burden and expense of a second trial after a decree in their favor, the court found that such hardship would be less than that which the defendant would suffer if it were to be deprived of its full day in court.

Holding that a statutory amendment, which granted a new trial based on the death or incapacity of the court reporter in an action tried before a jury, repealed by implication language in another section which provided that a new trial would not be granted

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under similar circumstances in a case tried without a jury, the court in State ex rel. Jackson v District Court of Second Judicial Dist. (1938) 107 Mont 30, 79 P2d 665, ruled that the statutory language that the "decision may be vacated and a new trial granted" entitled the wife in a divorce action to a new trial as a matter of right where the court reporter died before transcribing his notes after a nonjury trial.

3. Failure or Inability to Complete Partially Transcribed Notes

§ 42. Failure to demonstrate insufficiency of transcription

In the following civil case, the court refused to grant a new trial since the moving party failed to show that a sufficient record could not be prepared from the transcription completed by the court reporter before his death.

Ruling that the trial court had not abused its discretion in denying a motion for a new trial in an action for lateral support where the court reporter died before completing the transcription of his notes and the original file in the clerk's office had been destroyed, the court in Conlin v Coyne (1937) 19 Cal App 2d 78, 64 P2d 1123, held that the offending landowner had failed to show that a record sufficient for use on appeal could not have been made up without a complete transcript of the proceedings at the trial. Noting that 655 folders of transcript were available, the court found that the offending landowner had failed to show to what issues the missing portions related, or that he could not state the offers of testimony which were refused or the jury instructions in question without recourse to the reporter's transcript.

§ 43. Failure to ascertain completeness

The court in the following civil case found that the trial court did not abuse its discretion in refusing to grant a new trial to a party who failed to ascertain the completeness of the transcription prepared by the court reporter before his death.

Holding that a party who desired a new trial because of the impossibility of making a case made through no fault of his own must exhaust all reasonable means and methods which he might have employed to prepare, serve, settle, and sign a case made before he becomes entitled to a new trial, the court in Laffoon v Kantor (1962, Okla) 375 P2d 961, held that the trial court did not abuse its discretion in refusing a new trial where the plaintiffs made no effort to determine whether the dictation made by the court reporter from his notes before his death was a complete and accurate account of the evidence and proceedings of the trial. The court found that the plaintiffs had ample time after learning of the court reporter's death, and before the time within which to file an appeal expired, to have checked the transcript and to have determined themselves whether it was complete and accurate.

§ 44. Failure to show harm

A motion for a new trial was denied by the court in the following civil case where the moving party failed to show that he was prejudiced by the trial court's denial of a new trial upon the death of the court reporter who had completed a large part of the transcript before his death.

Observing that before his death the reporter furnished 460 pages of transcript which included all of the plaintiff's case in chief as well as his cross-examination of the two corporate executives, and that the balance of the record was made up in the form of a settled statement based upon partial transcriptions of the shorthand notes by other reporters and notes taken by the trial judge, the appellate court in Delafield v Searle Aero Industries, Inc. (1946) 76 Cal App 2d 862, 174 P2d 455, held that a salesman bringing an action on an employment contract against a corporation and two of its executives had not been prejudiced by the trial court's refusal to grant a motion for a new trial.

B. Attempt to Settle Record or Agree to Facts

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§ 45. Impossibility of reconstruction, generally

The courts in the following civil cases granted a new trial where it was impossible to reconstruct the record which was unavailable due to the death or disability of the court reporter.

Absent a showing that a case made could be prepared in any other manner than by the use of a reporter's transcript, it was held in Harris v First Nat. Bank (1929) 140 Okla 269, 282 P 1097, that the trial court committed error in denying a new civil trial where the court reporter who took notes of the trial suffered an eye impairment which prevented him from transcribing those notes. The appellate court held that the disability of the court reporter during the time allowed by law for preparing and serving the case made and the fact that the case made could not be prepared by any other person was sufficient showing on the part of the plaintiff in error for a new trial.

Where both the trial judge and the court reporter in a civil trial died in an accident after the jury had returned a verdict but before a judgment had been entered, the court in Pacific Nat. Fire Ins. Co. v Irmiger (1949) 254 Wis 207, 36 NW2d 89, held that, there being no bill of exception and no way to settle one because of the death of the reporter, the judgment should be reversed and the cause remanded for a new trial.

§ 46. Attempt not required

The courts in the following civil cases granted new trials upon the death or disability of the court reporter without transcribing his notes, ruling that an attempt to settle the record was not required as a prerequisite to such action.

Finding that the preparation of a settled transcript under an applicable court rule was a remedy in addition to any remedy given by law, the court in Fickett v Rauch (1947) 31 Cal 2d 110, 187 P2d 402, ruled that a defendant in a partnership action was not required to attempt to prepare a settled transcript upon the death of the court reporter in order to preserve his right to move for a new trial. It was held that, in the absence of a transcript, to require an appellant to prepare a settled statement from insufficient data would be unreasonable, therefore defendant was entitled to a new trial.

It was held in Weisbecker v Weisbecker (1945) 71 Cal App 2d 41, 161 P2d 990, a divorce action in which the court reporter died before transcribing his notes, that a motion for a settled statement was a remedy in addition to any given by law, and therefore any failure to move for a settled statement should not be considered a penalizing circumstance in connection with a motion for a new trial. The court, finding it difficult to see how the wife in the divorce action could prepare a settled statement, or present her contention that the judgment was contrary to the evidence, without the aid of a transcript or some other equivalent data nonexistent in this case, ruled that the trial court's refusal to grant her a new trial was an abuse of discretion.

Noting that the moving party need not attempt to prepare a settled statement before moving for a new civil trial, the court in Feldman v Katz (1958, 2d Dist) 160 Cal App 2d 836, 325 P2d 597, held that it was an abuse of discretion for the trial court to refuse to grant the new trial where the reporter died before transcribing her notes, other reporters were unable to read and transcribe them, and a settled or agreed statement could not be prepared.

Where the court reporter in a divorce action died before transcribing his notes, thereby depriving the husband of the opportunity to complete the record on appeal, the court in Harper v Harper (1958) 236 La 458, 107 So 2d 704, finding that the requirements that the husband attempt to prepare an agreed statement or submit a statement to the trial court for settlement were inapplicable where the testimony of the witnesses had been taken down by a reporter during the trial, held that he was entitled to a new trial so that evidence could be taken down and brought to the appellate court for inspection and consideration.

Based on the action of the state Supreme Court in Harper v Harper (1958) 236 La 458, 107 So 2d 704, the court in Bigger v Temple Iron Works, Inc. (1959, La App 2d Cir) 108 So 2d 808, found that the party against whom an injunction to abate a nuisance had been issued was entitled to a new trial without attempting to settle the record by other means where the court

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reporter had died before transcribing his notes and further efforts to secure the transcription of his notes by other reporters had been unavailing.

Citing with approval its decision in Bigger v Temple Iron Works, Inc. (1959, La App 2d Cir) 108 So 2d 808, the court in Daunis v Maryland Casualty Co. (1959, La App 2d Cir) 108 So 2d 809, held that the victim in a personal injury action was not required to attempt to settle the record by other means and was entitled to a new trial where the court reporter had died before transcribing his notes and the notes were unintelligible to other reporters and therefore not susceptible to transcription.

§ 47. Inability to agree to facts

The inability of the parties to agree on a statement of facts in lieu of a transcript which was unavailable because of the reporter's death or disability before transcribing his notes was found by the courts in the following civil cases to be grounds for a new trial.

Noting that counsel for a widow in a wrongful death action had prepared a narrative statement to which the city had suggested some 75 or 80 alleged inaccuracies and omissions, the court in Duncan v Abrams (1935) 171 Okla 619, 43 P2d 720, ruled that while the law required that the appellant exhaust every reasonable means to prepare a case made without a transcript of the reporter's notes, which was unavailable due to the death of the court reporter, it did not require that he accept as correct and complete his opponent's version of what occurred at the trial. It was held that if the city was unable, through no fault of its own, to prepare a record complete enough to show the evidence and the rulings that were made in connection with its introduction at trial, a new trial should be granted.

Under a statute providing for a statement of facts in question and answer form on appeal, for objections to the admission or exclusion of evidence or to any of the court's rulings to be incorporated therein in lieu of formal bills of exceptions, and for the parties, if they desired, to file a statement of facts in narrative form showing only the evidence and facts relating to questions of which review was sought, it was held in Victory v Hamilton (1936) 127 Tex 203, 91 SW2d 697, that the appellants were entitled to a new trial of a property dispute, where they were prevented from procuring a question and answer statement of the facts by the untimely death of the court reporter, and could not agree with the other party upon a narrative statement. It was also noted that the trial judge made an affidavit to his inability to certify a true statement of the facts.

It was held in Pacific Greyhound Lines, Inc. v Burgess (1938, Tex Civ App) 118 SW2d 1100, writ ref, that where a transcript in question and answer form was unavailable due to the reporter's death and the parties could not agree on a statement of facts in narrative form, a new civil trial should have been granted. Finding that a trial judge's statutory power to prepare a statement of facts had been withdrawn by statute, the court stated that, while the trial judge's statement may have been substantially correct, it was not the type of statement to which every litigant was entitled by law for use on appeal.

Where the appellate court found that a record could not be obtained due to the court reporter's disability, that other reporters were unable to read the disabled reporter's notes, and that due to the lapse of time, the loss and absence of documents introduced, and the failure of memory upon the part of the trial counsel and the judge, a statement of facts independent of the court reporter's notes could not be made, it was held in Caffee v McBee (1940, Tex Civ App) 142 SW2d 581, writ ref, that appellants having done all they properly could have to procure a statement of facts in question and answer form, a new trial would be granted.

§ 48. Agreed or settled record possible

The courts in the following civil cases in which no transcript was available due to the death or disability of the court reporter denied motions for new trials upon finding that an agreed or settled record had not been attempted but could be prepared.

See Herring v Kennedy-Herring Hardware Co. (1958, CA6 Tenn) 261 F2d 202, 1 FR Serv 2d 965, where the appellate court, noting that the District Court, not the Court of Appeals, had the authority to grant a new trial or to relieve a party from a final judgment, ordered the trial court to ascertain whether a fair and satisfactory record could be prepared for a review of an action

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for compensation for services, without the use of the stenographic transcript, which was unavailable due to the reporter's death and the inability of others to read his notes. If the trial judge found that a fair and satisfactory record, including a narrative statement of the testimony of the witnesses, could be prepared through the use of notes taken during the trial by the attorneys and the trial judge, supplemented by memories of the attorneys, witnesses, and the trial judge, and possibly from other sources, appellant's request for a new trial will be denied, the court declared, adding, however, that if the trial judge found that, without fault on the part of the appellant, or because of the failure of the appellee to fully co-operate in the matter, a record could not be prepared and presented to the Court of Appeals which would fairly and satisfactorily enable the court to review the judgment entered, a new trial would be granted.

Observing that a settled bill of exceptions is an ancient and approved method of presenting a record on appeal, the court in Conlin v Coyne (1937) 19 Cal App 2d 78, 64 P2d 1123, affirmed the denial of a motion for a new trial because of the death of the court reporter before completing the transcription of his notes upon finding that an offending landowner in an action for lateral support had not attempted to formulate such a bill, although opposing counsel was not shown to be unwilling to assist and the trial judge was available to aid in the settlement of a sufficient and proper bill exceptions. It was held that where a settled bill of exceptions could be prepared without a complete transcript of the evidence in the proceedings at the trial, a motion for a new trial should be denied.

While unwilling to lay down beforehand the exact facts on which a new civil trial should be granted because of the lack of a transcript due to the court reporter's illness, the court in Pierpoint v Akin (1925) 76 Colo 478, 232 P 682, upheld the trial court's denial of a new trial upon finding that there had been no attempt to summarize the evidence or to procure documentary evidence. It was also noted that no attempt was made to get the adversary to agree on a bill of exceptions without an extension of the notes.

Citing the decision in State v Thompson (1895) 130 Mo 438, 32 SW 975 (§ 16), in which the court ruled that an attorney had a duty to preserve the evidence by other means when illness prevented a reporter in a criminal case from transcribing his notes, as controlling, the Court of Appeals in Longmire v Diagraph-Bradley Stencil Machine Corp. (1943) 237 Mo App 553, 173 SW2d 641, denied a motion for a new civil trial, holding that it could see no reason or excuse why the parties and attorneys in an ordinary case, conversant as they were with the facts and points presented during the trial, could not put in writing in narrative form every important fact, objection, and ruling of the court, sufficiently complete to enable the appellate court to review the proceedings and alleged errors in an intelligent manner. Noting that other Courts of Appeals[34] within the state have issued rulings contrary to the one issued in the instant case, the court suggested that those courts had failed to be guided by the opinion of the state Supreme Court in the Thompson Case.

Ruling in a divorce action, the court in Kay v Kay (1950) 277 App Div 797, 97 NYS2d 607, held that the wife was not entitled to a new trial upon the death of the trial stenographer, finding that the parties could make a record on appeal from the testimony of witnesses, as disclosed by affidavits or otherwise, and the judgment role, and settle the record on appeal before the trial justice, with the aide of his minutes.

Citing Kay v Kay (1950) 277 App Div 797, 97 NYS2d 607, the court in Stewart v Garland (1957, 3d Dept) 3 App Div 2d 685, 159 NYS2d 75, denied a motion for a new trial, holding that the death of the trial stenographer shortly after the conclusion of the civil trial did not prevent the appellants from making a record on appeal by other means and settling it before the trial judge.

A user of a machine in an action to recover its purchase price was held not entitled to a new trial because of the death of the official stenographer in Lidgerwood Manuf'g Co. v Rogers (1889) 56 NY Super Ct 350, 4 NYS 716, app dismd 130 NY 660, 29 NE 1034, the court noting that before the use of stenographers was adopted, counsel for the parties were compelled to prepare the case and bill of exceptions from their notes or recollections of the testimony of the witnesses and that under the circumstances of this case, it was the defendant's duty to make the case, inserting so much of the evidence considered material to present the question involved in the appeal. The court added that if the case as proposed by the defense counsel did not fairly present the testimony, the other party could then propose amendments, after which the case would be settled by the trial judge.

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The court, in a proceeding involving the distribution of the remaining funds and assets of a dissolved charitable membership corporation, held in Application of Richmond County Soc. for Prevention of Cruelty to Children (1957) 8 Misc 2d 123, 165 NYS2d 861, app dismd (2d Dept) 11 App Div 2d 236, 204 NYS2d 707, affd 9 NY2d 913, 217 NYS2d 86, 176 NE2d 97, remittitur amd 10 NY2d 746, 219 NYS2d 415, 176 NE2d 920, cert den and app dismd 368 US 290, 7 L Ed 2d 336, 82 S Ct 375, that the death of a court reporter without having transcribed his minutes was not grounds for a new trial where the record could be settled by other means. The court ruled that the parties could make a record on appeal on the testimony of witnesses, as disclosed by affidavits or otherwise, and the judgment role, and settle the record on appeal before the trial justice, with the aid of his minutes.

Denying a motion for a new trial, the court in Butts v Anderson (1907) 19 Okla 367, 91 P 906, held that while the law contemplated that either party could request the transcription of the stenographer's shorthand notes, it did not contemplate that such was the only method of preparing a record for a case made and, where a transcript was unavailable because of the death of the stenographer, the moving party in a civil action should prepare a record on appeal which may either be agreed to by the opposing party or settled by the court. The court held that it was a manifest injustice to the victor at trial to have his judgment vacated and a new trial ordered because long after the judgment was rendered, a condition arose by which the dissatisfied party was unable to perfect an appeal from a judgment which must be presumed to be right and just.

Observing that the plaintiffs had neither ascertained the completeness and accuracy of the dictation made by the court reporter from his notes before his death nor completed a case made with detailed evidence either from the transcript that was typed, or in narrative form, the court in Laffoon v Kantor (1962, Okla) 375 P2d 961, held that the trial court was justified in finding that the plaintiffs were not entitled to a new civil trial because they had failed to exhaust all reasonable means and methods which they might have employed to prepare, serve, settle, and sign a case made.

A defendant who was unable to procure a trial transcript due to the death of the court reporter before transcribing his notes was held in Koonce v Mesquite (1964, Tex Civ App Tyler) 382 SW2d 309, writ dism, not to be entitled to a new civil trial, where he had failed to diligently attempt to prepare a statement of the facts by other means. The court ruled that the affidavit submitted by the present District Court judge, who assumed the bench after the judge who presided at the trial retired, attesting that he had no knowledge of the facts introduced in evidence at the trial and was unable to prepare a statement of facts covering the evidence introduced at the trial, could not be considered as evidence of diligence on the part of the defendant since state law required that the judge who tried the case approve the bill of exceptions and statement of facts in a case, even though his term of office may have expired before he was called upon to do so.

§ 49. Substitute record prepared

The existence of a substitute record which had been agreed to by the parties or settled by the trial judge was found in the following civil cases to preclude the granting of a new trial upon the death or disability of the court reporter before transcribing his notes.

Finding that the notes of counsel were substantially complete as to the testimony adduced and that the bill of exceptions seemed to contain all the necessary testimony of the witnesses at the trial, the appellate court in Norris v Norris (1942) 50 Cal App 2d 726, 123 P2d 847, affirmed the trial court's denial of a motion for a new trial, ruling that the wife in a divorce proceeding was not prejudiced by her inability to obtain a reporter's transcript because of the death of the reporter who reported a portion of the proceeding.

Finding that the portion of the record not prepared by the court reporter who died before completing the transcription of his notes was made up in the form of a settled statement based upon partial transcriptions of the shorthand notes by other reporters and notes taken by the trial judge, the appellate court in Delafield v Searle Aero Industries, Inc. (1946) 76 Cal App 2d 862, 174 P2d 455, held that a salesman bringing an action on an employment contract against a corporation and two of its executives had not been prejudiced by the trial court's refusal to grant a motion for a new trial.

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An automobile driver in a personal injury action, who was unable to obtain a transcript of trial testimony because the reporter died unexpectedly before transcribing his notes, was found in Pulem v George (1968, Mo App) 433 SW2d 83, not to be entitled to a new trial where a narrative statement of the case was prepared and approved by attorneys for both parties and by the trial judge. The driver was not prevented from presenting his contentions to the court as fully as he would have been if a full transcript were available because no questions regarding the admission of evidence or other trial incidents had been preserved for review by the motion for new trial, the court declared.

Denying the contention of an automobile driver involved in a collision with a pedestrian that because a stenographer was an essential part of the court machinery, a party who was unable to obtain, through no fault of his own, a transcript of the stenographer's report for use on appeal was entitled to a new trial, the court in McSherry v Peckham (1930) 50 RI 473, 149 A 380, held that the driver's inability to obtain a transcript of the trial due to the reporter's death was not grounds for a new trial where he had filed a statement of testimony adjudged by the trial court to be a full and fair extract of the evidence. Noting that the statute making provisions for the appointment of stenographers was intended to make available to the court the best obtainable record so as to eliminate, so far as possible, disputes and misunderstandings as to proceedings in a given case, the court found that this method of making up a record for appeal was not exclusive nor was the stenographer's transcript conclusive as to what took place at the trial. The court found the statement of testimony sufficient to enable it to review the jury charge, and concluded that since the driver did not point out the errors which he contended were contained therein, his exceptions were without merit.

Finding that the statement settled by the trial judge in an action on a sales contract after the court reporter had died without transcribing his notes complied with the applicable state statutes and rules, the appellate court held in Southern Pine Lumber Co. v Martin (1921) 118 SC 319, 110 SE 804, that a new trial was not required. Noting that the trial court adopted the statement of testimony proposed by the victor, the appellate court held that it was the duty of the trial judge to consider the proposed case or amendments and to settle it as he saw fit, the appellate court being bound by whatever case the trial judge made.

The wife in a divorce proceeding was held in Crawford v Crawford (1944, Tex Civ App) 181 SW2d 992, writ dism w o j, not to be entitled to a new trial due to her inability to obtain a trial transcript because of the death of the court reporter, where she had prepared a statement of the facts to which her husband would not agree, and where, at her request, the trial judge prepared a statement of facts which he certified constituted a substantially true and correct transcript of all the testimony adduced at the trial. The court found that the trial judge had authority, in cases of disagreement among the parties upon the settlement of the facts, to settle those differences by preparing and filing a statement of facts. Observing that the wife failed to show injury from her inability to procure a complete question and answer transcript of the testimony at the trial, the court refused to grant her a new trial.

§ 50. Different counsel on appeal; former counsel unavailable

The inability of the defense counsel on appeal to prepare a bill of exceptions without a transcript because he did not represent the defendant at trial and the trial counsel was not available to assist him was found by the court in the following civil case to be insufficient grounds for the granting of a new trial upon the death of the court reporter before transcribing his notes.

Noting that there seemed to be little distinction between a situation where a bill of exceptions could not be prepared without a transcript because counsel had forgotten the facts and one where, due to a substitution of attorneys, counsel has no sufficient knowledge of the facts and former counsel was not available to assist in the preparation of the record, the appellate court in Smith v Orange Belt Supply Co. (1943) 58 Cal App 2d 848, 137 P2d 845, refused to grant a new civil trial upon the death of the court reporter before completing the transcript, ruling that to recognize the latter as sufficient to require the granting of a new trial would lead to a result not contemplated by state law. It was held that while an affidavit alleged that the former counsel was unavailable for any assistance in preparing the record, the showing that no such assistance could have been had by timely effort was "not too strong."

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§ 51. Former counsel unable to sufficiently recall facts

The court in the following civil case granted a new trial upon the death of the court reporter without transcribing his notes where the appellate counsel's lack of knowledge of the rulings at trial and the trial counsel's inability to sufficiently remember the facts prevented the preparation of a record by other means.

Observing that the moving party need not attempt to prepare a settled statement before moving for a new trial because of the death of the court reporter and the inability of others to transcribe his notes, the court in Feldman v Katz (1958, 2d Dist) 160 Cal App 2d 836, 325 P2d 597, an action to quiet title and regain possession of property, held that a new trial would be granted since it was manifestly impossible for the moving party's present counsel, who had not participated in the trial and had no knowledge of the proceedings below, to undertake the preparation of any such record where the moving party's trial counsel stated that he could not arrive at an agreement as to the statement of facts because of the many variances in the testimony of the witnesses at the trial.

§ 52. Statement refused by court

The courts in the following civil cases granted new trials upon finding that narrative statements submitted by the parties in lieu of a transcript because of the death of the court reporter before transcribing his notes were insufficient to enable them to fairly and accurately evaluate the merits on appeal.

The court in Werner v Harper (1976, Fla App D1) 328 So 2d 511, cert den (Fla) 341 So 2d 291, an action to rescind a contract reviewed on a record which was compiled without the benefit of a transcript because the court reporter's death precluded its preparation, held that, although legal and factual considerations prevented the judgment from being sustained on the record submitted, it was conscious of the strong presumptions which favor judgments entered by a trial court sitting as the finder of fact. Therefore, the court remanded the cause for a new trial since the record submitted may have omitted evidence which would have materially influenced its opinion.

Ruling upon a narrative statement submitted in lieu of a transcript because of the death of the court reporter, the court in Richeson v Hunziker (1961, Mo) 349 SW2d 50, ordered that the judgment in a wrongful death action be reversed and the cause remanded for a new trial, finding it utterly impossible to fairly or accurately evaluate the merits upon appeal because of the confused state of the record upon which the cause had been submitted. Stating that there were recitals in the narrative statement which, if they accurately reflected the incidents they purported to portray, were such as to cause it grave concern, the court found that the statement was deficient in failing to disclose if objections were actually made, and the grounds thereof, to what might under certain circumstances be regarded as quite prejudicial evidence and untoward incidents, if they occurred, so numerous and repeated as to perhaps warrant a new trial. Although observing that both parties had agreed that the narrative statement be taken as the transcript, the court nevertheless held that it was unwilling to affirm on such a nondescript and obviously inaccurate and incomplete record, preferring that the cause be remanded so as to afford a more adequate and acceptable method of testing the rights of the parties on appellate review.

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West's Key Number Digest, **Appeal and Error** **608(1)**
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West's Key Number Digest, **Appeal and Error** **610**
West's Key Number Digest, **Appeal and Error** **611**
West's Key Number Digest, **Appeal and Error** **612**(1-5)
West's Key Number Digest, **Appeal and Error** **630**
West's Key Number Digest, **Appeal and Error** **634**
West's Key Number Digest, **Appeal and Error** **635(4)**
West's Key Number Digest, **Appeal and Error** 639(1)
West's Key Number Digest, **Appeal and Error** 639(2)
West's Key Number Digest, **Appeal and Error** **640**
West's Key Number Digest, **Appeal and Error** 977(1)
West's Key Number Digest, **Appeal and Error** 978(1)
West's Key Number Digest, **Appeal and Error** 979(1)
West's Key Number Digest, **Appeal and Error** 980
West's Key Number Digest, **Appeal and Error** 1034
West's Key Number Digest, **Appeal and Error** 1133
West's Key Number Digest, **Appeal and Error** 1135
West's Key Number Digest, **Appeal and Error** 1137
West's Key Number Digest, **Appeal and Error** 1144
West's Key Number Digest, **Appeal and Error** 1164
West's Key Number Digest, **Appeal and Error** 1165
West's Key Number Digest, **Appeal and Error** 1170(1)
West's Key Number Digest, **Appeal and Error** 1177(1)
West's Key Number Digest, **Appeal and Error** 1177(2)
West's Key Number Digest, **Appeal and Error** 1177(9)
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West's Key Number Digest, **Criminal Law** **913(1)**
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West's Key Number Digest, **Criminal Law** **1104(3)**
West's Key Number Digest, **Criminal Law** **1104(4)**
West's Key Number Digest, **Criminal Law** **1104(6)**
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West's Key Number Digest, **New Trial** **1**
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West's Key Number Digest, **New Trial** **13**
West's Key Number Digest, **New Trial** **27**
West's Key Number Digest, **New Trial** **82**
West's Key Number Digest, **New Trial** **93**
West's Key Number Digest, **New Trial** **94**
West's Key Number Digest, **New Trial** **96**
West's Key Number Digest, **New Trial** **98**
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A.L.R. Library

Index to Annotations, Appeal and Error
Index to Annotations, Appellate Procedure Rules
Index to Annotations, Court Reporter
Index to Annotations, Death and Death Actions
Index to Annotations, Disabled Persons
Index to Annotations, New Trial
Index to Annotations, Stenographers
Index to Annotations, Transcripts
Power of Successor or Substituted Judge, in Civil Case, to Render Decision or Enter Judgment on Testimony Heard by Predecessor, 84 A.L.R.5th 399
Failure or refusal of state court judge to have record made of bench conference with counsel in criminal proceeding, 31 A.L.R.5th 704
Use in state court by counsel or party of tape recorder or other electronic device to make transcript of criminal trial proceedings, 67 A.L.R.3d 1013
Determination of indigency of accused entitling him to transcript or similar record for purposes of appeal, 66 A.L.R.3d 954
Power of successor or substituted judge, in civil case, to render decision or enter judgment on testimony heard by predecessor, 22 A.L.R.3d 922
Right of indigent defendant in criminal case to aid of state as regards new trial or appeal, 55 A.L.R.2d 1072
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Footnotes

1 The present annotation supersedes the one at 19 A.L.R.2d 1098.

2 Cases dealing with a healthy reporter's inability to produce a transcript because his notes have been lost, stolen, or otherwise destroyed are beyond the scope of this annotation, as are cases in which the reporter has moved beyond the jurisdiction of the court and refuses to transcribe his notes. However, cases in which the reporter's notes cannot be found after his death or disability occurs are included. Also outside the scope of this annotation are cases dealing with the lack of a transcript occasioned by a disability which prevented the reporter from taking notes of the testimony at trial.

3 See Am. Jur. 2d, Appeal and Error. § 411

4 See Am. Jur. 2d, Appeal and Error. § 412

5 Am. Jur. 2d, New Trial § 162.

6 See Am. Jur. 2d, Criminal Law § 805.

7 See Am. Jur. 2d, Appeal and Error § 416.

8 See, for example, Duarte v Rivers (1949) 90 Cal App 2d 152, 202 P2d 612, and McKinley v McKinley (1904) 123 Iowa 574, 99 NW 162.

9 See, for example, People v McKee (1962) 25 Ill 2d 553, 185 NE2d 682, cert den 374 US 810, 10 L Ed 1033, 83 S Ct 1698, reh den 375 US 872, 11 L Ed 102, 84 S Ct 31, and People v Drew (1970) 26 Mich App 337, 182 NW2d 566.

10 See, for example, Ex parte Steen (1983, Ala) 431 So 2d 1385, 57 ALR4th 1037, on remand (Ala App) 431 So 2d 1391, and McNabb v State (1939) 137 Tex Crim 463, 132 SW2d 273.

11 See Smith v State (1976, Ala App) 346 So 2d 465, cert den (Ala) 346 So 2d 382; and Ex parte Steen (1983, Ala) 431 So 2d 1385, 57 ALR4th 1037, on remand (Ala App) 431 So 2d 1391.

12 See Herring v Kennedy-Herring Hardware Co. (1958, CA6 Tenn) 261 F2d 202, 1 FR Serv 2d 965 (applying Federal Rules of Civil Procedure).

13 Rodriquez v Williams (1969) 104 Ariz 280, 451 P2d 609.

14 Rodriquez v Williams (1969) 104 Ariz 280, 451 P2d 609.

15 See Watsabaugh & Co. v Seabord Surety Co. (1939, CA9 Mont) 106 F2d 355.

16 See Fickett v Rauch (1947) 31 Cal 2d 110, 187 P2d 402.

17 See Fickett v Rauch (1947) 31 Cal 2d 110, 187 P2d 402.

18 Conlin v Coyne (1937) 19 Cal App 2d 78, 64 P2d 1123.

19 See Conlin v Coyne (1936) 15 Cal App 2d 569, 59 P2d 884.

20 See Kroeker v Jack (1942) 51 Cal App 2d 272, 124 P2d 619.

21 See Brooks v National Shawmut Bank (1949) 323 Mass 677, 84 NE2d 318 (superseded by statute on other grounds as stated in Commonwealth v Harris, 376 Mass 74, 379 NE2d 1073), where the court found that the new matter need not be of an evidentiary nature, holding that the death of a stenographer whereby the defendant was unable to obtain a transcript of the testimony was a new matter of the sort on which a bill of review could be grounded.

22 Pursuant to a Supreme Court ruling in Chessman v Teets (1957) 354 US 156, 1 L Ed 1253, 77 S Ct 1127, that failure to allow a defendant who was representing himself to attend the record settlement hearing was a

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violation of due process, another settlement hearing was held with defendant present and the record prepared by the substitute court reporter was recertified. People v Chessman (1959) 52 Cal 2d 467, 341 P2d 679, cert den 361 US 925, 4 L Ed 241, 80 S Ct 296, reh den 361 US 941, 4 L Ed 362, 80 S Ct 383 and cert den 362 US 965, 4 L Ed 879, 80 S Ct 883 and disapproved on other grounds People v Morse, 60 Cal 2d 631, 36 Cal Rptr 201, 388 P2d 33, 12 A.L.R.3d 810.

23 In an earlier appeal, State v Neely (1974) 21 NC App 439, 204 SE2d 531, the court, denying the robber's motion for a new trial because of the reporter's death and the inability of others to read her notes, ordered that an agreed or settled record on appeal be compiled and stated that if the circumstances so justify, defendant might also assert as an assignment of error that he is unable to obtain effective appellate review of errors committed during the trial because of the inability to obtain a reporter's transcript. The deceased reporter's notes were later found to be transcribeable in part, and the above appeal ensued.

25 In an earlier appeal of the trial court's refusal to grant a motion for a new trial upon the death of the court reporter, the court in People v Reyes Oyola (1954) 76 Puerto Rico 277, held that since the death of the court reporter, which resulted in the impossibility of preparing a record, was not among the statutory grounds for a new trial, the motion could not be granted.

26 In an earlier appeal, People v Bergman (1939) 171 Misc 946, 14 NYS2d 200, it was held that the convicted burglar was not entitled to a new trial based on his inability to obtain the transcript due to the death of the court reporter, since the court reporter died after time for appeal from judgment of conviction had expired. The court also ruled that however useful or desirable stenographic notes of a trial might be on a motion for new trial, they are neither mandatory nor indispensable and the inability to obtain them is not grounds for a new trial.

27 The court had denied the appellant's motion to vacate and set aside his judgment of conviction 2 days before the state filed its motion to dismiss.

29 Any indication in this opinion that the trial court has a mandatory duty to grant a new trial where it is impossible to prepare a transcript of the proceedings from the reporter's notes or records was expressly refuted in Turman v Pruitt (1964, Okla) 397 P2d 652, where the court, ruling in a situation where the reporter's shorthand notes had been lost, held that if the trial court finds that the narrative statement submitted in lieu of a reporter's transcript is of sufficient accuracy and completeness to enable the appellate court to properly review the proceedings, a new trial should not be granted.

30 Noting that prior to 1931 a new trial could be granted only for causes which were enumerated by statute and that the inability of a party to present the transcript of the evidence by reason of the death of a shorthand reporter was not one of them, nor did it qualify as an "irregularity in the proceedings of the court" since the irregularity occurred after the trial, not during it, the court found that the words "shall have power" as used in the statute allowing for a new trial upon the death or disability of the court reporter before transcribing his notes were not equivalent to "must" and that the trial court was vested with so wide a discretion that its abuse must be made clearly to appear before an appellate court was warranted in disturbing its action.

31 This action is one of a number of actions which were consolidated for appeal and is commonly referred to as "the Stenographer Cases."

32 This action is one of a number of actions which were consolidated for appeal and is commonly referred to as "the Stenographer Cases."

33 For the proposition that this case has been effectively overruled by Massachusetts Rule of Appellate Procedure 8(c), which provides that when a transcript is unavailable the appellant may prepare a statement of the evidence from the best available means, see Commonwealth v Harris (1978) 376 Mass 74, 379 NE2d 1073.

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34 See Green v Kansas City (1934, Mo App) 77 SW2d 652, for example (§ 34).

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